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Honour Killings of Afghan Women in Germany:

An Analysis of Legal Frameworks and Implications

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Yeshwant Naik is Scientific Director of the IDEA Institute. His research interests include law, human rights, equality, gender and sexuality, migration, multiculturalism, marginalization, and the relationship between law and society.

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Abstract

This study examines honour killings affecting Afghan women in Germany within the broader legal, social, cultural, and institutional context of honour-based violence. The study addresses an important gap in the existing literature, as the principal comprehensive empirical research on the judicial treatment of honour killings in Germany examined cases occurring between 1996 and 2005, and no comparable comprehensive study of subsequent German lower-court decisions has been identified. Adopting a qualitative socio-legal and legal-anthropological approach, it combines doctrinal legal analysis with court decisions, interviews and discussions, expert and NGO perspectives, case material, and media reports. The study examines how German criminal law addresses honour-related violence and considers the difficulties involved in identifying honour-related motives, documenting cases consistently, protecting individuals at risk, and responding to violence that may involve multiple family members. It further explores the relationship between honour-based violence, patriarchal gender structures, migration, cultural continuity, family expectations, integration, and female autonomy, while cautioning against generalisations concerning Afghan, Muslim, or migrant communities. The analysis argues that German criminal law already provides mechanisms for prosecuting honour-related violence and that the central challenge lies less in the absence of a separate offence than in effective identification, prevention, protection, investigation, and consistent institutional responses. The study concludes by advocating improved data collection, risk assessment, victim protection, professional awareness, and preventive measures while maintaining equal criminal responsibility and avoiding cultural stereotyping.

Introduction: Understanding Honour Killings

Honour killings constitute a distinct form of gender-based violence that differs from conventional domestic violence because they are typically perpetrated collectively by family or community members seeking to restore perceived honour of the family or community following conduct regarded as socially or culturally unacceptable.¹ While most victims of "honour" crimes² are women, men may also be targeted, particularly as the romantic partners of women whose families seek to protect their perceived family

¹ Elakkary et al., "Honour Crimes: Review and Proposed Definition," *Forensic Science, Medicine and Pathology*, vol. 10, no. 1, 2014, pp. 76–82.

² The terms "honour killings," "honour crimes," "honour murders," "honour-based violence," and "honour-based crimes" are not interchangeable and do not convey identical meanings, despite their close relation. "Honour killings" specifically refers to the murder of a family member, usually a woman, perceived to have brought shame to the family. "Honour crimes" is a broader term that includes various forms of violence, such as emotional and physical abuse, intended to defend or restore a family's honour. "Honour murders" is synonymous with honour killings but emphasizes the murder aspect. "Honour-based violence" encompasses a wider range of abuses, including physical, emotional, and psychological violence committed in the name of honour. Lastly, "honour-based crimes" refers to all criminal acts intended to protect or restore perceived honour. While these terms relate to violence motivated by cultural beliefs surrounding honour, their nuances highlight different aspects and levels of severity associated with these acts.

honour or by members of their own families, particularly in cases involving homosexuality or disability.³

Honour crimes have a long history dating back to ancient Mesopotamia in 1750 BC. The concept of a woman's virginity as the property of her family is reflected in the Code of Hammurabi.⁴ Throughout history, religious texts have also prescribed severe punishments for adultery, including the death penalty, as illustrated in the Old Testament. Under ancient Roman law, a husband was permitted to kill his wife if he caught her committing adultery, whereas no corresponding right existed for wives.⁵

Honour crimes can occur in any community, transcending religious boundaries. Although they are more prevalent in the Middle East and South Asia, they have also been documented in Hindu, Sikh, Druze, Christian, and Jewish communities.⁶ For example, in India, the term "honour killing" generally refers to murders committed in response to inter-caste or inter-religious marriages or romantic relationships. Across South Asia, honour killings frequently involve a combination of domestic violence and violence committed in the name of preserving social norms related to caste, religion, and family status. The continued resistance to marriages outside one's caste or religion in many South Asian countries demonstrates that honour killings occur in both educated and less educated families.

In some instances, such crimes are deliberately disguised as suicides in order to avoid detection.⁷ Consequently, many honour killings remain unreported to the police. Even when reported, they are frequently misclassified as accidents or suicides. Victims who have suffered severe physical violence—including beatings, burning, strangulation, shooting, or stabbing may nevertheless be recorded as having died by suicide despite the absence of compelling evidence and despite sustaining multiple serious injuries.⁸

Reports of honour-based crimes have also emerged in Eastern and Southern Europe, as well as Central Asia, including Albania, Bosnia and Herzegovina, Georgia, and Uzbekistan. Although such crimes remain more prevalent outside the European Union, they have become an increasing concern in some EU countries because of migration and integration challenges. Similar cases have also been documented in the United States and Canada.⁹

³ Khan and Lowe, "Homophobic 'Honour' Abuse Experienced by South Asian Gay Men in England," in M. Idriss (ed.), *Men, Masculinities and Honour-Based Violence*, ch. 6, Routledge Cavendish, 2020.

⁴ Prpic, Martina, "Combating 'Honour' Crimes in the EU," European Parliamentary Research Service, December 2015,

[https://www.europarl.europa.eu/RegData/etudes/BRIE/2015/573877/EPRS_BRI\(2015\)573877_EN.pdf](https://www.europarl.europa.eu/RegData/etudes/BRIE/2015/573877/EPRS_BRI(2015)573877_EN.pdf) (accessed 9 July 2024); Goldstein, Matthew. "The Biological Roots of Heat-of-Passion Crimes and Honour Killings." *Politics and the Life Sciences: The Journal of the Association for Politics and the Life Sciences*, vol. 21, 2002, pp. 28–37.

⁵ Goldstein, "The Biological Roots of Heat-of-Passion Crimes and Honour Killings."

⁶ Prpic, "Combating 'Honour' Crimes in the EU."

⁷ Ercan, "Creating and Sustaining Evidence for 'Failed Multiculturalism': The Case of 'Honour Killing' in Germany," *American Behavioral Scientist*, vol. 59, no. 6, 2015, pp. 658–678.

⁸ Singh and Dailey, "Honour Killing," *Encyclopaedia Britannica*, 27 August 2023.

⁹ Prpic, "Combating 'Honour' Crimes in the EU."

According to the United Nations, approximately 5,000 women worldwide are killed each year in the name of honour, with the majority of these crimes occurring in the Middle East and Asia.¹⁰ However, many scholars believe that this figure significantly underestimates the true scale of the problem owing to widespread underreporting. Academic opinion remains divided on whether honour crimes should be classified as a distinct category of violence or as a specific manifestation of domestic violence. Some scholars argue that honour crimes are distinguishable because of their collective nature, whereas others contend that they should be understood within the broader framework of patriarchal violence against women, which is not confined to any particular culture or community.¹¹

Research conducted in Afghanistan demonstrates the complex relationship between honour killings, patriarchy, poverty, and domestic violence. Families in which women experience honour killings tend to exhibit higher levels of violence against women and girls, stronger patriarchal gender attitudes, and greater economic deprivation than other households.¹² Studies have further shown that honour killings involving married women are associated with economic hardship, limited access to emergency financial resources, and domestic violence. By contrast, honour killings involving unmarried women are more strongly associated with patriarchal gender norms, household violence, and restricted economic autonomy. These findings suggest that the root causes of honour killings are multifaceted and closely linked to structural inequalities, patriarchy, poverty, and gender-based violence.¹³

In communities where honour-based violence is prevalent, women's bodies may be regarded as resources for reproduction, domestic labour, and access to social or economic resources. Arranged marriages between cousins or close relatives frequently serve to preserve land ownership and family property. Furthermore, honour functions as a form of social capital that enables families to achieve status within their communities independently of economic or political influence. Consequently, maintaining family honour may be particularly significant for economically disadvantaged households, where social reputation represents one of the few available sources of status.¹⁴

Legal responses to honour killings and honour-based abuse (HBA) remain inadequate in many jurisdictions. Afghanistan's 2009 Elimination of Violence Against Women Law criminalises various forms of physical, sexual, and psychological violence against women but does not specifically address honour killings. Instead, such offences are prosecuted under general criminal law, which historically allowed reduced sentences for

¹⁰ Amnesty International USA, "The Horror of 'Honour Killings' — Even in the US," accessed 9 July 2024, <https://www.amnestyusa.org/updates/the-horror-of-honour-killings-even-in-us/>.

¹¹ Prpic, "Combating 'Honour' Crimes in the EU."

¹² Gibbs et al., "Factors Associated with 'Honour Killing' in Afghanistan and the Occupied Palestinian Territories: Two Cross-Sectional Studies," PLoS ONE, vol. 14, no. 8, 2019, e0219125.

¹³ Ibid.

¹⁴ Ibid.

perpetrators who killed women for perceived moral transgressions.¹⁵ Furthermore, adultery constituted a criminal offense under Article 427(1) of the 1976 Afghan Penal Code and was punishable by lengthy terms of imprisonment. Although the legislation did not explicitly discriminate against women, in practice women were considerably more likely than men to face prosecution because of prevailing social and cultural norms.¹⁶ Consistent with these structural inequalities, both Syria and Afghanistan have been ranked among the lowest-performing countries on the United Nations Development Programme's Gender Inequality Index, reflecting persistent gender disparities and limited protection of women's rights.¹⁷

Although honour killings had already attracted significant public and political attention in Germany before 2015, the arrival of substantial numbers of refugees and migrants from countries including Syria and Afghanistan from 2015 onwards gave renewed significance to questions concerning honour-based violence, victim protection, and the adequacy of Germany's legal and institutional response.

Against this background, the central question of this study is: How should German law and institutions respond to honour-related violence involving migrant families and communities while ensuring equal criminal responsibility, effective protection of victims, and sensitivity to cultural context without resorting to cultural stereotyping?

Methodology

This study adopts a qualitative socio-legal and legal-anthropological approach to examine the factors associated with honour-related violence and its legal and social treatment in Germany. The research combines doctrinal legal analysis with empirical and documentary material, including court decisions, expert perspectives, semi-structured and informal interviews, focus-group discussions, information provided by non-governmental organisations (NGOs) and case workers, and print and other media reports. The use of these different sources was intended to provide insight into both the legal treatment of honour-related violence and the wider social and cultural contexts in which such cases arise and are understood.

The empirical research relied principally on three sources of information. First, I consulted NGO staff, case workers, and other individuals with professional knowledge of honour-related violence and women's rights. Secondly, I conducted interviews, conversations, and focus-group discussions with migrant and German participants, including individuals approached through personal and extended social networks. All interlocutors were living in Germany at the time of the relevant interview or conversation. Thirdly, the empirical material was supplemented by documentary and

¹⁵ UN Working Group on the Issue of Discrimination Against Women in Law and in Practice, "Mandate of the Working Group on the Issue of Discrimination Against Women in Law and in Practice," 15 November 2017.

¹⁶ Ibid.

¹⁷ Alkousaa, Riham, "Afghan Brothers Go on Trial in Germany for 'Honour Killing' of Sister," Reuters, 2 March 2022.

case-based sources, including court judgments, expert material, NGO documentation, and media reports concerning individual cases.

Cases were selected purposively rather than through random sampling. Selection was influenced by the availability of sufficiently detailed information and the relevance of individual cases to the research questions. An effort was also made to include cases reflecting variation in geographical location and, where such information was available and relevant, religious, educational, and socio-economic backgrounds. The cases examined collectively provide insights into honour-related violence over approximately a ten-year period beginning in 2015. The purpose of the case selection was not to produce a statistically representative account of honour-related violence in Germany, but to examine recurring themes, differences, and patterns across selected cases and sources.

The study also draws on accounts attributed to perpetrators, where such interviews or statements were publicly available, as well as accounts provided by individuals who knew or had knowledge of persons involved in cases. These materials were used to explore how individuals connected with such cases described motives, family dynamics, cultural expectations, gender roles, and perceptions of honour. Attention was also given to the possible involvement of family or community members in encouraging, facilitating, or participating in honour-related violence. Such accounts were treated as individual narratives and perspectives rather than as independently established statements of fact unless corroborated by judicial or other reliable documentary sources.

Given the sensitivity of the subject matter, the study did not seek to recruit individuals currently experiencing honour-related violence directly through NGOs. Approaching vulnerable individuals may create ethical and practical risks, particularly where questions of family surveillance, personal safety, or ongoing legal proceedings are involved. Greater reliance was therefore placed on NGO case workers and professionals with experience of such cases, survivors where available and appropriate, and other individuals possessing relevant knowledge or experience. This approach also provided an indirect means of understanding circumstances encountered by victims without making direct access to vulnerable individuals a prerequisite for the research.

Participants recruited for interviews, conversations, and focus-group discussions were identified primarily through purposive and convenience sampling, including professional contacts, NGO connections, and personal or extended social networks. The resulting group of interlocutors does not constitute a representative sample of either migrant communities or the German population. Their accounts are therefore used qualitatively to identify experiences, perceptions, and recurring themes rather than to make statistical generalisations about German society, migrant communities, or religious or cultural groups.

Interviews were audio-recorded on a mobile device with the consent of participants where recording was appropriate. Where interviews or conversations were not recorded, contemporaneous written notes were made. Interview records, notes, and other research materials were organised according to source and date and stored in separate password-protected files on the researcher's personal computer. The material was subsequently examined qualitatively alongside the documentary and legal sources to identify recurring

themes, similarities and differences between accounts, and points of convergence or divergence between empirical narratives and the legal and institutional material.

Ethical considerations were particularly important because of the sensitive nature of honour-related violence and the potential vulnerability of individuals connected with such cases. Participation in interviews and conversations was voluntary and undertaken with the consent of participants. Identifying information was omitted or anonymised where necessary, and quotations were used with consent or in anonymised form where appropriate. Participants were able to provide their accounts through semi-structured or informal conversations, allowing them to describe their experiences and perceptions without being confined to a rigid questionnaire. No attempt was made through NGOs to obtain access to vulnerable individuals merely for the purposes of the research.

The study also encountered methodological limitations arising from the nature of honour-related violence itself. Witnesses and detailed case information may be difficult to obtain, particularly where investigations or judicial proceedings remain ongoing. Evidentiary limitations may complicate criminal investigations and prosecutions and affect what can ultimately be established beyond reasonable doubt. German data-protection and privacy requirements may further restrict access to identifying or case-specific information. Media reporting, NGO documentation, and individual narratives likewise differ in their evidentiary status and cannot automatically be treated as equivalent to judicially established facts.

For these reasons, the study uses triangulation across legal, documentary, professional, and qualitative sources wherever possible. Information obtained through NGO case workers and other interlocutors was considered alongside court decisions, documentary materials, expert sources, and media reporting. Convergence between different sources may strengthen the contextual understanding of themes, but it does not convert qualitative evidence into statistically representative findings. The methodology is therefore intended to provide a contextual and interdisciplinary understanding of honour-related violence and its legal treatment in Germany rather than to establish its national prevalence or to generalise the experiences of interlocutors to migrant communities.

Ground Reality in Germany

In Germany, the concept of honour killings became prominent after the 2005 murder of Hatun Sürücü, a young Turkish/Kurdish woman, who was shot by her brother for allegedly dishonouring the family by divorcing her abusive husband and dating a German man. Her case led to the retrospective classification of similar murders as 'honour killings', though the term was not specifically defined in German law. The political and public response was polarised between competing interpretations of honour killing. Culture-based accounts framed it as a culturally specific form of violence associated particularly with migrant and Islamic communities, whereas gender-based accounts situated it within the broader framework of patriarchal violence against women. Ercan also observes that

some German feminist discourse associated honour killings particularly with patriarchal cultures, most notably Islamic cultures.¹⁸

The 2004 immigration law intensified debates about integration and acceptance of German culture among migrants, particularly among communities originating from Turkey. This sparked fears of 'parallel societies,' where non-integrated immigrants were perceived as rejecting Western values.¹⁹ The media contributed to this narrative, portraying honour killings as predictable consequences of these societal divides. Reports often highlighted opinions supporting honour-related violence. For instance, one newspaper reported that three young Turkish students from a school near the site of Hatun's murder claimed that Hatun was to blame for her fate, asserting she was a whore who lived "like a German". This reporting contributed to a public perception that honour-related violence enjoyed broader cultural acceptance within certain Muslim communities, thereby reinforcing the portrayal of Islam as a source of women's oppression.²⁰

The issues of honour killings, domestic violence, and gender-based violence are intricately intertwined, especially within immigrant communities, where cultural factors intersect with legal and social frameworks. These challenges must also be viewed through the lens of broader international responsibilities and the processes of acculturation.

In Germany alone, between January 1996 and July 2005, police reported 55 honour killings.²¹ A study conducted by the Max Planck Institute from 1996 to 2005 analysed 78 honour murder cases in Germany. The findings suggest that honour killings cannot be distinguished from other forms of violence and often overlap with domestic violence or blood revenge. The study found that honour killings are more prevalent among immigrant families who bring patriarchal and collectivist norms from their countries of origin.²² Notably, only 10% of the honour killings were committed by German nationals, whereas those with Turkish nationality were three times more likely to be involved. Most honour killers were first-generation immigrants who had not acquired German citizenship, often born and socialised outside of Germany, and maintained strong ties to their countries of origin.²³ In contrast, second and third generation immigrants born and socialised in Germany were not significant perpetrators. The study implies that honour killings may not become a permanent phenomenon in Germany, as there was no increase or strong participation among second or third generation immigrants. In the cases examined, honour-related motives were only rarely regarded as constituting a "base motive" (niedrige Beweggründe), with sentences often proving more lenient than might have been expected under established legal principles.²⁴

¹⁸ Ercan, "Same Problem, Different Solutions: The Case of 'Honour Killing' in Germany and Britain," in A. K. Gill, C. Strange and K. Roberts (eds.), 'Honour' Killing and Violence, Palgrave Macmillan, 2014, pp. 199–217.

¹⁹ Ibid.

²⁰ Ibid.

²¹ Oberwittler and Kasselt, "Ehrenmorde in Deutschland," *Polizei + Forschung*, no. 42, 2011, p. 230.

²² Ibid.

²³ Ibid.

²⁴ Ibid.

While the study's conclusions were drawn from data collected between 1996 and 2005, the significance of its findings remains relevant in the current German context. Nevertheless, honour killings continue to occur in Germany. It is crucial to acknowledge, however, that the study's results are not directly transferable to contemporary situations, as societal attitudes and demographic trends have evolved since the study was conducted. Furthermore, novel factors such as alterations in migration patterns, shifts in societal values, and increased awareness about honour killings have likely impacted the frequency or nature of these tragic events in Germany.

The women's rights organisation Terre des Femmes has documented cases of murders and attempted murders committed in the name of honour in Germany through its press research. The findings indicate that at least 26 individuals were victims of completed or attempted honour killings between 2022 and 2023. The organisation refers to this phenomenon as a result of "strongly patriarchal societies", which are often influenced by Islamic beliefs. The data reveals that there were 12 victims of violence in the name of honour over the past two years, with 10 of those being women.²⁵ Additionally, there were 14 victims of attempted murder, with nine of those being women. In 2021, Terre des Femmes documented 19 cases of attempted and completed honour killings, resulting in a total of 45 victims over the past three years. Notably, 22 individuals lost their lives because of these crimes. The investigations into honour killings typically consider a two-year timeframe, as court proceedings often begin a year after the incident and only become publicly known then.²⁶ The supposed insult to honour often involves behaviour that violates societal norms regarding female sexuality and social status, with perpetrators denying women the right to self-determination. In most cases, the male victims are new, "illegitimate" partners or fathers of children born out of wedlock. These murders are violent attempts to restore allegedly injured family honour.²⁷

The lack of an official police definition makes it challenging to accurately record this crime. Also, there are no official statistics on how many honour killings have been committed. These are not euphemistically referred to as "honour killings," but rather brutal and violent murders that occur when a woman is perceived as having compromised her virtue by engaging in premarital sex or forming romantic relationships with someone outside of her family's approval.²⁸ This conception of honour is based on rigid patriarchal norms that require women to conform to strict expectations regarding sexuality and marriage. When a girl or young woman fails to adhere to these expectations, she is viewed as a source of shame and often becomes a target for brutal violence, perpetuating a culture of patriarchal oppression.²⁹

²⁵ TERRE DES FEMMES, "Mindestens 26 vollendete oder versuchte 'Ehren'morde in den letzten zwei Jahren: Die Ergebnisse der TDF-Presserecherche," 4 February 2024.

²⁶ Ibid.

²⁷ Ibid.

²⁸ Singh and Dailey, "Honour Killing."

²⁹ Der Spiegel, "An Honour Killing in Germany: Afghan Girl's Death Sparks National Debate," accessed 4 July 2024.

Cases where a woman is killed by her intimate partner or ex-partner are referred to as "Femicide" or "Geschlechtermord". Femicide³⁰ is a term that specifically refers to the killing of a woman by a man, often in the context of domestic violence or intimate partner violence. Media representations of femicide cases reveal a striking disparity in how these crimes are framed and explained depending on the perpetrator's ethnic and religious background. When the perpetrator belongs to the majority society, the case is typically categorised as a femicide, attributed to patriarchal societal structures, and situated within the broader context of violence against women.³¹ In contrast, when the perpetrator is from a Muslim community, the case is often labelled as an "honour killing" and blamed on the perpetrator's alleged adherence to archaic, misogynistic values and lack of integration into German society.³²

A comparative analysis of two femicide cases in Germany - those of Dorota L. and Maryam H. - highlights this phenomenon. In May 2020, Dorota L., a 40-year-old woman, was brutally murdered by her estranged husband Wolfgang L., who stabbed and drowned her in a public garden pond in front of witnesses. The following year, Maryam H., a 34-year-old woman, was killed by her two brothers Mahdi and Yousuf H. in an act motivated by their perception of her lifestyle as a threat to their family's honour.³³ Media coverage of these cases differed considerably. While Dorota L.'s femicide was trivialized as a "crime of passion" or "family tragedy," situated within the broader issue of violence against women, Maryam H.'s murder was repeatedly referred to as an "honour killing." In this instance, the perpetrators were portrayed as representatives of a separate world governed by outdated, misogynistic values and lacking integration with the dominant German society. The victim Maryam H. is often depicted as caught between two worlds: her traditional cultural heritage and her desire for a Western lifestyle characterised by autonomy, self-determination, and modernity.³⁴

Politicians and women's rights organisations often refer to these crimes as "femicides" or "violence in the name of honour," respectively. It is noteworthy in contemporary times that many Germans consider these crimes to be only a small part of a larger phenomenon, primarily perpetrated by individuals from an Islamic or migrant background. Many commentators attribute this trend to the large-scale migration and refugee influx that has

³⁰ An honour killing may also constitute a femicide where a woman is killed because of gendered expectations concerning family honour. However, the terms are not interchangeable: femicide is a broader concept referring to gender-related killings of women, whereas an honour killing is defined by the specific motive of protecting or restoring perceived family or community honour.

³¹ Schwacke, Lea, "Between Two Worlds: The Racialisation of Femicides in German News Reports," Malmö University, 2022.

³² Schwacke, "Between Two Worlds."

³³ Ibid.

³⁴ Schwacke, "Between Two Worlds"; Korteweg and Yurdakul, "Religion, Culture and the Politicization of Honour Related Violence," UNRISD, vol. 12, 2010, pp. 1–47; Reimers, "Representations of an Honour Killing," *Feminist Media Studies*, vol. 7, no. 3, 2007, pp. 239–255; Shier and Shor, "'Shades of Foreign Evil': 'Honour Killings' and 'Family Murders' in the Canadian Press," *Violence Against Women*, vol. 22, no. 10, 2016, pp. 1163–1188; Wischniewski, "Femi(ni)zide in Deutschland," *Femina Politica*, vol. 27, no. 2, 2018, pp. 126–134.

arrived in Germany since 2015.³⁵ The others explain it by reference to cultural differences stemming from lack of education, inadequate integration, and conservative mindsets that may be rooted in the immigrants' countries of origin. Some scholars argue that the term "honour killing" should be abolished because it is often used specifically to describe cases involving individuals with an immigration background, whereas those who commit similar crimes in Germany are instead labelled as having committed a "relationship tragedy" or "family tragedy".³⁶

In contrast to South Asian nations like India, where "honour killings" are generally associated with murders arising from inter-caste or inter-religious marriages or romantic relationships, Germany lacks a similar caste or religious hierarchy.³⁷ Recently, "honour killings" have become a focal point in the political discussions of various countries receiving migrants, including Germany. However, in South Asia, where honour killings remain a widespread issue, this topic does not hold the same level of political significance.

In Germany, the concept of "honour killings" has been linked to the notion of 'failed multiculturalism', implying that migrant communities are unable to successfully integrate into mainstream society.³⁸

The present analysis suggests that characterising multiculturalism as a failure oversimplifies the complex processes of migration, integration, and acculturation. Migrants bring with them diverse cultural norms, belief systems, and social experiences shaped by their family backgrounds and societies of origin. It is unrealistic to expect them to instantly adopt Western norms and values; their deeply embedded beliefs and cultural identities cannot be easily replaced by language proficiency alone.

Acculturation is a gradual and multidimensional process, and the values acquired through earlier socialisation cannot be expected to change immediately following migration. The problem of honour killings cannot be effectively addressed without implementing meaningful changes in the individuals' countries of origin. Previous studies have suggested that some migrants arrive with perceptions of Western societies formed by prevailing cultural narratives in their countries of origin. These misconceptions stem from their cultural backgrounds and need to be addressed for any real progress to occur. Ultimately, it is crucial to recognise that everyone has their own unique worldview and cultural history. Rather than expecting immediate assimilation, greater attention should be given to the gradual process of acculturation and social integration.³⁹

Germany's engagement in Afghanistan is relevant to the present study not as a general assessment of German foreign policy, but because the protection and empowerment of

³⁵ Ibid.

³⁶ Ibid.

³⁷ Ercan, "Creating and Sustaining Evidence for 'Failed Multiculturalism'"; Singh and Dailey, "Honour Killing."

³⁸ Ercan, "Creating and Sustaining Evidence for 'Failed Multiculturalism'."

³⁹ Ibid.

Afghan women formed an important component of that engagement. Following the deterioration of women's rights and the displacement of Afghans, Germany also became a destination for Afghan refugees, including women seeking protection. Questions previously addressed partly through foreign and development policy thereby acquired a domestic dimension involving asylum, integration, gender equality, victim protection, and criminal justice. The occurrence of honour-related violence involving Afghan families in Germany makes this connection particularly relevant to the present inquiry.

Germany's military and civil engagement in Afghanistan was partly framed in terms of protecting and empowering Afghan women. Following the Taliban's return to power, however, women's rights deteriorated⁴⁰ substantially, including in education, employment and public participation.⁴¹

According to the evaluation report, Germany's civil engagement in Afghanistan between 2013 and 2021 sought to promote constitutional governance, improve living conditions, and strengthen state institutions. The Federal Ministry for Economic Cooperation and Development (BMZ) had three main objectives: establishing sustainable state and economic structures, improving governance, and empowering women and girls. However, these goals were considered overambitious and unrealistic.⁴² The report identifies both achievements and shortcomings. Positive outcomes included improvements in living conditions in northern Afghanistan, particularly in Kabul, and the provision of basic services, especially for women and girls. However, the evaluation also concluded that Germany underestimated Afghanistan's political and institutional context, lacked policy coherence, failed to initiate sustainable structural reforms, and did not adequately address emerging risks. According to the report, the BMZ made important contributions, but its engagement was limited by its own assumptions, insufficient coherence, and failure to address structural changes.⁴³

The continued reporting and prosecution of cases involving suspected honour-related violence in Germany from the period examined by Oberwittler and Kasselt (1996–2005) through to recent cases involving Afghan families raises questions about the effectiveness of Germany's domestic response to such violence.⁴⁴

⁴⁰ Babst et al., “What the Afghanistan Moment Means for Germany, the EU and NATO,” Policy Paper: WELT POLITIK FÄHIGKEIT, Friedrich Naumann Foundation for Freedom, October 2021.

⁴¹ Ibid.

⁴² German Institute for Development Evaluation (DEval), Interministerial Strategic Evaluation of German Federal Government's Civil Engagement in Afghanistan: Report on the German Federal Ministry for Economic Cooperation and Development's Engagement in Afghanistan, Executive Summary, 2023.

⁴³ Ibid.

⁴⁴ Oberwittler and Kasselt, “Ehrenmorde in Deutschland,” p. 230; Huchtkötter and Gather, “Mord an 15-jähriger Tochter – lebenslange Haft für Elternpaar,” SWR Aktuell, 11 April 2025; Walch and Neubrech, “Mord an 15-Jähriger in Worms – Verurteilte Eltern legen Revision ein,” SWR Aktuell, 23 April 2025.

Evidence and Perspectives from Germany

The empirical material also revealed considerable scepticism among some interlocutors regarding Germany's engagement in Afghanistan. One interlocutor expressed a particularly critical interpretation of Germany's motives:

Germany has simply been trying to interfere in Afghanistan's affairs for decades to weaken the country. The intention from the beginning was to weaken Afghanistan, and feminism is simply being used as a political strategy. Conflicts, wars in Afghanistan make Germany happy. So why are they supplying troops, weapons? The intention is to make us dependent on them, like modern slavery. If they couldn't do anything for so many years, what are they going to do now? The result of all these years of involvement are now Afghan asylum seekers in Germany. Everything revolves around money, power and nothing else.

This account should be understood as an interlocutor's perception rather than as evidence of German policy objectives. It nevertheless illustrates the distrust with which external interventions may be viewed by some individuals affected by, or reflecting upon, Afghanistan's recent political history. The official DEval evaluation provides a more appropriate basis for assessing the objectives and limitations of German development engagement.

Although the interlocutor's interpretation goes considerably beyond the conclusions of the official evaluation, it can be contrasted with the shortcomings identified by the German Institute for Development Evaluation (DEval). The evaluation found that between 2013 and 2021 the BMZ spent approximately €1.725 billion on 213 projects in Afghanistan, with 41 per cent of its funding directed towards good governance, the rule of law, and human rights. Significantly, the report concluded that, although women's and girls' empowerment had been identified as a strategic priority, it “was not integrated into all projects”. The evaluation further identified insufficient attention to marginalised groups and concluded that institutional, political, and social risks had not been adequately addressed.⁴⁵

The significance of these developments for the present study lies in the movement of the question of Afghan women's protection from the international to the domestic sphere. As Afghan refugees settled in Germany, German institutions increasingly encountered questions involving integration, gender equality, family relations, victim protection, and criminal justice. While the DEval findings concern Germany's engagement in Afghanistan, the question of protecting women from gender-based violence also arises within Germany itself. Available cases and statistics provide some indication of this broader domestic challenge, although they do not always distinguish honour-based violence from other forms of femicide.

⁴⁵ DEval, Interministerial Strategic Evaluation of German Federal Government's Civil Engagement in Afghanistan, Executive Summary.

In Rhineland-Palatinate (German federal state), femicide remains a significant concern. According to media reports cited by Nikolaidis, 155 women were reportedly killed because of their gender in the preceding year. These cases were not confined to Muslim women but involved women from different social and cultural backgrounds. The relationship between these broader cases of gender-based killing and honour-based violence remains difficult to establish, particularly because honour-related motives are not systematically recorded in official statistics. Nikolaidis argues that some cases of honour-based violence are associated with religious or customary norms, including interpretations of Islam and related tribal traditions concerning women's sexuality and family conduct.⁴⁶

One reported case involved a 34-year-old Muslim man who stabbed his pregnant girlfriend to death after she announced her pregnancy and planned to reveal their relationship to her mother. The perpetrator was subsequently sentenced to 12 years' imprisonment.⁴⁷

A further case concerned a 15-year-old girl from an Afghan family who was found dead near Worms-Rheindürkheim in June 2024. Her parents were subsequently charged with her murder. In April 2025, the Mainz Regional Court (*Landgericht Mainz*) convicted both parents of murder and sentenced them to life imprisonment, finding a particular severity of guilt. The court found that the parents had drugged the girl, taken her to the Rhine, strangled her and thrown her unconscious into the river. Significantly for the present study, although the family originated from Afghanistan, the court did not regard religious reasons or cultural values as the decisive motive for the killing. Rather, according to the court, the parents regarded their daughter as a disruptive presence within the family and acted for what the court characterised as selfish motives. Both parents subsequently appealed against the judgment, meaning that the judgment was not yet final at that stage.⁴⁸

As already noted, Terre des Femmes has documented cases of attempted and completed honour killings in Germany during 2022 and 2023. The documented cases involved individuals from different migrant communities, including Yazidi communities originating from the Middle East.⁴⁹

Most of these cases are classified as murders or domestic violence by the courts, but they often go unacknowledged as "honour killings". This lack of recognition can lead to a lack of understanding and inadequate justice for the victims and their families. Many of these cases are prosecuted under general homicide or domestic-violence frameworks rather than being formally classified as honour killings. This raises questions concerning whether the honour-related dimensions of such offences are sufficiently recognised in

⁴⁶ Nikolaidis, Matthias, "Der normalisierte Ehrenmord in Worms, Köln, Bremen und Solingen," *Tichys Einblick*, 19 June 2024.

⁴⁷ Focus, "Mann ersticht Schwangere auf offener Straße – Festnahme," accessed 8 July 2024.

⁴⁸ Huchtkötter and Gather, "Mord an 15-jähriger Tochter – lebenslange Haft für Elternpaar"; see also Walch and Neubrech, "Mord an 15-Jähriger in Worms – Verurteilte Eltern legen Revision ein."

⁴⁹ TERRE DES FEMMES, "Mindestens 26 vollendete oder versuchte 'Ehren'morde in den letzten zwei Jahren."

judicial proceedings. Some reported cases have also prompted criticism regarding the assessment of evidence and the identification of relevant characteristics of victims and perpetrators. These concerns warrant further examination of whether existing legal categories adequately capture the specific dynamics of honour-based violence.⁵⁰

The broader relationship between migration and crime provides an additional context in which honour-based violence may be considered. Migration involves not only the geographical movement of individuals but also the transfer of social norms, cultural values, family structures, and gender expectations acquired through socialisation in countries of origin. Such attitudes do not necessarily disappear upon arrival in the receiving society and may persist, particularly among first-generation migrants. In communities originating from societies in which family honour, female sexuality, and gender roles are governed by strongly patriarchal norms, these expectations may therefore continue to influence family relationships after migration. This does not imply that migration itself causes honour-based violence, nor that such attitudes can be attributed to migrant communities generally. Rather, it suggests that migration may provide the social context through which pre-existing honour-related norms are transferred to and reproduced within the receiving society.

Based on my experience while conducting this research, including my attempts to obtain information from police authorities concerning ongoing cases, I observed that the identities of victims and alleged perpetrators were frequently withheld, apparently for reasons relating to data protection and privacy. Media reports also frequently referred to possible mental health or psychological factors and indicated that investigations remained ongoing. When I approached police authorities for further information concerning individual cases, I was generally informed that the investigations were still in progress, which limited my access to detailed case information. Following these cases over time also proved challenging, as investigations and subsequent judicial proceedings could take two years or longer to reach a conclusion.

These limitations in accessing information on ongoing investigations make the examination of completed cases and published judicial decisions particularly important for understanding how honour-related violence is treated within the German legal system.

Legal Treatment of Honour Killings in Germany

Honour killings have remained a significant concern in Germany over the past two decades, with cases reported throughout the period from 2005 to 2024. These acts have become a continual concern within German society. The courts have been slow to acknowledge honour as a motive in their judgments, in some cases resulting in sentences that commentators have regarded as comparatively lenient. Germany's commitment to

⁵⁰ Ibid.

migration, multiculturalism, and diversity has intensified the need to address the cultural and social factors associated with honour-based violence within certain migrant communities. This is essential for understanding the underlying causes of violence against women and for developing effective legal responses. In light of contemporary societal developments, German courts face increasing pressure to address the cultural and legal dimensions of honour-based violence more explicitly. The question remains whether judges should consider a perpetrator's cultural background when determining a sentence. Some argue that cultural background should be considered as a mitigating factor, while others believe it provides no justification.⁵¹

Until 2005, the Federal Court of Justice (Bundesgerichtshof – BGH) had not developed a consistent approach to the treatment of honour-related motives in sentencing. Although honour was considered in some cases as part of the offender's cultural background, judicial treatment of such factors remained inconsistent. The outcomes of these cases varied, as did the extent to which honour-related motives were addressed in the judgments. Only a few cases involved expert opinions that could have shed some light on the issue. The Court's approach to cultural evidence in determining sentences was inconsistent and sometimes stereotypical, leading to differences in protection for immigrant women compared to German women. This approach was problematic because it perpetuated harmful attitudes towards immigrant women.⁵² Notably, some perpetrators who had lived in Germany for more than twenty years at the time of the offence were nevertheless regarded as being strongly influenced by their cultural background, raising questions concerning the extent to which individual responsibility was assessed independently of cultural attribution.⁵³

Several court cases highlight the issues of culture-based violence against immigrant women in Germany, and a few of these cases are cited here as examples.⁵⁴

A Kurdish Yazidi man who kidnapped and coerced his wife into sexual intercourse received a relatively lenient sentence despite being convicted of rape, with the court considering his cultural background and the victim's cultural background.⁵⁵

A Turkish man who coerced his wife into sexual intercourse by threatening her with a knife received a relatively lenient sentence despite being convicted of rape, with the court considering his cultural background and the victim's cultural background.⁵⁶

⁵¹ Kasselt, Julia, "The Judicial Interpretation of Honour Killings in Germany," International Max Planck Research School on Retaliation, Mediation and Punishment (IMPRS REMEP), 2008–2011, p. 63.

⁵² Oberwittler and Kasselt, "Ehrenmorde in Deutschland," p. 230.

⁵³ Ibid.

⁵⁴ Pohlreich, "Culture-Based Violence Against Immigrant Women in German Federal Court of Justice (BGH) Decisions," in R. K. Thiara, S. A. Condon and M. Schrötle (eds.), *Violence Against Women and Ethnicity: Commonalities and Differences across Europe*, Verlag Barbara Budrich, 2011, pp. 383–398.

⁵⁵ Ibid.

⁵⁶ Ibid.

A man who killed his sister-in-law because she refused to comply with his family's wishes was convicted of manslaughter rather than murder, with no consideration given to his cultural background as a mitigating factor.⁵⁷

On 22 May, a 39-year-old Turkish-born Kurd, Nurettin B., attempted to murder his 28-year-old wife, Kader K., after she asked him to provide financial support for their two-year-old son. He stabbed her in the chest and abdomen, hit her with an axe, and then tied a rope around her neck and drove her through the streets at high speed before she was thrown off the car and survived. The court heard how Nurettin B. believed women were slaves who should be silent. This is one of several recent cases in Germany where men have committed violent acts against their wives or female relatives in the name of “honour”. In other recent cases, men have shot their wives, stabbed them to death, or attacked them in the name of preserving family honour. Some commentators have linked such crimes to patriarchal interpretations of religious and customary norms, including those justified by reference to Islamic law (Sharia) within certain communities.⁵⁸

Terre des Femmes reports that every three days, a woman is killed by her former partner, with 139 such murders occurring in 2020. Despite this, German criminal law does not explicitly recognise femicides (murders of women by their intimate partners) as a specific crime, and there is no punishment for them separate from other types of murder. Critics have argued that some judicial decisions appear to attribute responsibility to victims or fail adequately to recognise gender-based violence.⁵⁹

The Istanbul Convention, which came into force in Germany in 2018, provides for specific aggravating circumstances if the crime was committed against a former or current wife or partner, but this has not led to significant changes in how femicides are prosecuted. Loughi and Gernhardt argue that the inadequate recognition of femicide as a distinct problem perpetuates patriarchal structures in which women may continue to be blamed for their own murders.⁶⁰ There are no comprehensive official statistics on the number of honour killings in Germany, and a significant number of cases of honour-based violence are believed to remain unreported.⁶¹

A number of documented honour killings in Germany have involved migrants originating from Africa, Asia, and the Middle East, with some cases reflecting cultural, religious, or customary conceptions of family honour.⁶² Some commentators have argued that police and media reporting practices limit public access to detailed information about these crimes. As a result, the exact number of victims and perpetrators, as well as the

⁵⁷ Ibid.

⁵⁸ Landgericht Hannover, judgment of 31 May 2017, 39 Ks 7/17; Kensch, Christine, “‘Frauen sind Sklaven, sie müssen ihren Mund halten’: Nurettin B. vor Gericht,” *Die Welt*, 22 May 2017.

⁵⁹ Loughi and Gernhardt, “Femizid oder Ehrenmord: Begriffsdefinition,” *TERRE DES FEMMES*, 13 October 2022.

⁶⁰ Ibid.

⁶¹ Ibid.

⁶² Kasselt, “The Judicial Interpretation of Honour Killings in Germany,” p. 63.

circumstances surrounding these crimes, often remains unknown. The website Ehrenmord documented at least 102 cases of honour-related violence in Germany in 2017, although these figures do not constitute official crime statistics.⁶³

In 2019, Germany recorded a high number of femicides in the European Union. A tragic case involved a 35-year-old doctor who was stabbed 18 times by her former partner outside her home in Frankfurt. According to the prosecutor, this type of femicide often stems from years of domestic violence, which begins with verbal abuse and humiliation. Women's rights activists have criticized the media's reporting on such crimes, which often sensationalizes and romanticizes them, portraying them as “crimes of passion” or “love tragedies”.

As stated, Germany has ratified the Council of Europe's Istanbul Convention in 2018, which aims to prevent and combat violence against women, including femicide. Despite this, women's rights activists believe more needs to be done to address the issue, including increasing awareness, providing adequate shelter and support services for victims, and holding perpetrators accountable.⁶⁴

To obtain further insight into current reporting practices, I corresponded with Elisabeth Gernhardt, a policy specialist at TERRE DES FEMMES, a prominent German women's rights organisation. Our correspondence focused on the organisation's annual study of alleged honour killings and provided valuable insight into the methodological challenges encountered in documenting such cases.⁶⁵

The organisation's study is not a statistical analysis, but rather an analysis of press reports aimed at shedding light on the issue. Gernhardt highlighted several challenges they encounter. She explained that the term “honour killing” lacks a precise legal definition and is often the subject of public discourse. Media reports may not accurately reflect the motivations behind these crimes, as they typically rely on publicly available information rather than internal police or prosecutorial records. Additionally, many newspapers have paywalls that limit access to pertinent information. As a result, Gernhardt's organisation is compelled to develop its own criteria for identifying “honour killings”, frequently based on references to honour-related motives found in news articles. Moreover, the judicial system does not consistently categorize crimes as honour killings, which complicates efforts to track statistics effectively.⁶⁶

Gernhardt also highlighted that TERRE DES FEMMES has produced several studies and policy papers on this issue, including a 2011 report from the Federal Criminal Police Office (BKA). She noted that while the judiciary recognises that honour-based motives do not constitute a mitigating factor, further action is necessary to prevent such crimes. Gernhardt stressed the significance of employing the term “honour killing”.⁶⁷

⁶³ Ehrenmord.de, accessed 7 July 2024, <https://www.ehrenmord.de/>.

⁶⁴ Goldenberg, Rina, “Germany Sees High Numbers in Femicide,” Deutsche Welle, 25 November 2020.

⁶⁵ Gernhardt, Elisabeth, personal email to Yeshwant Naik, 12 July 2024.

⁶⁶ Ibid.

⁶⁷ Ibid.

To combat honour-based violence and forced marriages in Germany, TERRE DES FEMMES has outlined several demands,⁶⁸ including the need for increased awareness and education in schools, the establishment of a national hotline and central registration office for forced and early marriages, and enhanced youth welfare services that provide dedicated officers and funding. They call for better protection of victims through the availability of counselling centres, shelters, and trained officials, and seek amendments to § 37(2a) of the Residence Act to allow victims of forced marriage or other coercive situations to return to Germany. Furthermore, they advocate for making religious or social coercion to marry punishable under § 237 of the Criminal Code and support the push for an EU-wide minimum marriage age of 18 years without exceptions.⁶⁹

As part of this research, I also contacted Uta Glaubitz, the creator of the website Ehrenmord. She explained that she had ceased archiving information on honour killings because of difficulties with the website's administration and the increasing workload associated with the number of cases recorded since 2015. Glaubitz also expressed scepticism regarding the German government's interest in researching honour killings, suggesting that the subject did not correspond with current political priorities.⁷⁰ Her observations illustrate some of the practical and institutional difficulties encountered by independent researchers seeking to document honour-based violence and raise broader questions concerning the availability of systematic data on the phenomenon in Germany.

These difficulties in documenting honour-based violence in Germany should also be situated within a broader comparative context, as the phenomenon is neither confined to Germany nor exclusively associated with any particular religion, culture, or migrant community.

A German and Global Challenge

Honour-based violence is not confined to a particular religion or society, although its forms and justifications vary across cultural, religious, and social contexts. In some Muslim-majority societies, honour-based violence has been associated with attempts to regulate women's sexuality, relationships, and conformity with established gender roles. Although honour killings have no clear basis in Islamic texts and have been rejected by many religious leaders, conservative interpretations of religious and customary norms have at times been invoked to justify such violence. Studies have shown that honour killings are not unique to Muslims or Islam, but rather a result of pre-industrial patriarchal structures.⁷¹ India, for instance, has a significant number of honour killings in some Hindu and Sikh communities, particularly in the regions of Haryana, Punjab, and Rajasthan.

In some countries, laws that criminalize extramarital sex (Zina) under Sharia law perpetuate the idea that women should be punished for non-traditional sexual behaviour.

⁶⁸ TERRE DES FEMMES, Forderungen zum Thema Gewalt im Namen der Ehre, March 2023.

⁶⁹ Ibid.

⁷⁰ Glaubitz, Uta, personal email to Yeshwant Naik, 10 July 2024.

⁷¹ Loughi and Gernhardt, "Femizid oder Ehrenmord: Begriffsdefinition."

Additionally, some countries allow for leniency in sentences for crimes committed in the name of honour. For example, Article 192 of Syria's penal code allows a judge to issue reduced sentences for killing based on honourable intent. Perpetrators may also use methods to gain legal favourability or avoid punishment altogether.⁷² Although the Syrian government abolished a law that effectively sanctioned "honour killings" in 2020, a loophole remains. Under Article 192 of the Penal Code, judges can still significantly reduce sentences if they deem certain circumstances extenuating. This includes instances where the murder was motivated by a desire to protect honour or when it was committed in a state of rage provoked by an illegal act committed by the victim (Article 242).⁷³

Further, forced suicide or "self-immolation" is a common tactic used to avoid punishment, particularly in Kurdish regions of Iran. Families may also recruit minors to commit the murder to potentially reduce their sentences. Law enforcement may not take these cases seriously, which allows these crimes to continue unchecked.⁷⁴ Many nations have taken legislative steps to prevent honour killings and punish perpetrators. Turkey has established a life sentence for anyone involved in honour killings,⁷⁵ while Pakistan has abolished the practice of pardoning perpetrators if they are forgiven by the victim's family.⁷⁶

Under Article 98 of Jordan's penal code, perpetrators can receive a reduced sentence if the victim's family drops the charges. Even when the family does not pardon the criminal, cases rarely result in sentences longer than a year. A particularly controversial feature of the Jordanian response has been the practice of placing women and girls threatened by family members in protective custody rather than addressing the threat posed by the perpetrators. Some girls remain in prison until their family members die.⁷⁷

Law-enforcement practices have also been criticised for reinforcing mechanisms of control over women. Police have threatened women with invasive virginity tests after families become suspicious of "dishonourable" behaviour, contributing to a culture of domination over women's bodies. In addition, police frequently do not investigate honour-related crimes. The combination of harassment and indifference by law enforcement makes women less likely to report abuse. Strict family laws regarding extramarital sex and children born out of wedlock further strip women of their agency over their bodies.⁷⁸

⁷² United Nations Women at UC Davis. "Davis Model United Nations Conference XV." 20–21 May 2017, pp. 6–14.

⁷³ Human Rights Council, "Gendered Impact of the Conflict in the Syrian Arab Republic on Women and Girls," Fifty-third session, 19 June–14 July 2023, Agenda Item 4, p. 6.

⁷⁴ Yoosefi Lebni, Javad, et al. "A Study of Kurdish Women's Tragic Self-Immolation in Iran: A Qualitative Study." *Burns*, vol. 45, no. 7, 2019, pp. 1715–1722, <https://doi.org/10.1016/j.burns.2019.05.012>.

⁷⁵ Bethany Corbin, "Between Saviors and Savages: The Effect of Turkey's Revised Penal Code on the Transformation of Honour Killings into Honour Suicides and Why Community Discourse Is Necessary for Honour Crime Eradication," *Emory International Law Review*, vol. 29 (2014), <https://ssrn.com/abstract=3414688>.

⁷⁶ Kanwal, Shagufta. "Honour Killing: A Case Study of Pakistan." *Journal of Law & Social Studies*, vol. 3, no. 1, 2021, pp. 38–43, <https://doi.org/10.52279/jlss.03.01.3843>.

⁷⁷ United Nations Women at UC Davis, "Davis Model United Nations Conference XV," pp. 6–14.

⁷⁸ *Ibid.*

In Western Europe and North America, documented honour killings have frequently occurred within migrant communities in which conflicts arise between established family expectations and women's exercise of individual autonomy. Such conflicts may concern relationships, marriage, sexuality, dress, or other forms of conduct perceived as incompatible with family honour.⁷⁹ Furthermore, in Germany the term "honour killing" is controversial, with some arguing that it is a euphemism and others criticizing it for being racist, xenophobic, and stigmatizing towards certain religious groups.⁸⁰ To combat honour killings, government must take swift action to address these issues within their own borders. This involves establishing strict laws and legal proceedings to deter these crimes and punish perpetrators. Moreover, better data should be collected to assess the prevalence of honour killings in the country, and victim support and protection should be prioritized.

Germany's reluctance to recognise honour killings as a distinct legal category raises a broader tension. While German policy emphasises gender equality, multiculturalism, and the protection of women from gender-based violence, the absence of a specific legal classification may limit the visibility of the cultural and social dimensions associated with honour-based crimes. This raises questions concerning whether existing legal categories adequately capture the particular dynamics of such violence and whether Germany's domestic response is fully consistent with its broader commitments under Sustainable Development Goal 5.⁸¹

An interlocutor with extensive practical experience in documenting honour killings in Germany expressed considerable dissatisfaction with the manner in which public institutions and the judiciary address such cases. According to the interlocutor:

"The public legal institutions, particularly the criminal justice system, are not doing enough to address honour killings. The juvenile justice system is particularly problematic, implying that it is being exploited by certain individuals or groups. I have a unique perspective on the issue, having collected many details about honour killings, but no one wants to hear from me."⁸²

"When I began studying honour killings in 2007, the situation was much worse. The media would often report on these crimes without providing any context or information about the perpetrators' nationalities or identities, making it difficult to understand the scope of the issue. While there may have been some exceptions, overall Bild newspaper provided good information. Minors or individuals who claim to be under 21 are involved in honour killings because they are less likely to face harsher penalties under German Juvenile Justice law. The media often reports on these cases with limited information, supposedly to protect the young perpetrator's identity. The lack of up-to-date official statistics on honour killings in Germany is "completely ludicrous" - the latest available data is from before 2015. Even if a new study were conducted, there would be issues with selecting which cases to include and how to define an "honour motive".⁸³

⁷⁹ Ibid.

⁸⁰ Loughi and Gernhardt, "Femizid oder Ehrenmord: Begriffsdefinition."

⁸¹ United Nations, "National Commitments to SDG Transformation," accessed 24 July 2024, <https://sdgs.un.org/national-commitments-sdg-transformation/21891>.

⁸² Conversation with interlocutor, July 23, 2024.

⁸³ Ibid.

Another interlocutor reported having been contacted several years earlier by researchers involved in a study of honour killings in Germany. The interlocutor expressed doubts regarding the extent to which those researchers understood the phenomenon.

Interlocutor stated:⁸⁴

"It's remarkable that the work of these researchers is often promoted and shaped by university professors who determine the research direction based on the priorities of funding organisations who fund them. They cannot write reality but rather give a diplomatic analysis. They cannot write against public institutions; their research is not complete and has limitations. Like if they openly criticize too much against public institutions their funding will be blocked, also their positions. I feel this research is not genuine rather a diplomatic script."

Taken together, the interlocutor accounts reveal considerable frustration with the reporting and documentation of honour killings in Germany, particularly regarding the judiciary, media reporting, access to official information, and the availability of reliable statistics.

Another interlocutor stated:⁸⁵

"Due to data protection and sensitive data, it is not easy to access internal police and public prosecutor files. This is a good excuse not to reveal true information; there is room for manipulation and suppression of actual facts before the case is leaked to the press. There is a lack of transparency."

My research also highlighted the tension between privacy protection and transparency in the German criminal justice system. The identities of suspects and perpetrators are frequently withheld from public reporting in accordance with data-protection and privacy principles. While such protections serve legitimate legal purposes, they can create methodological difficulties for researchers attempting to trace individual cases, establish demographic characteristics, or analyse possible patterns across cases.

Furthermore, the limited availability of identifying information can restrict the public's and researchers' ability to obtain detailed information about individual crimes. Media and police reports may, for example, refer only generally to "a man" or provide limited information concerning nationality or other relevant characteristics. Although more detailed information has been disclosed in some recent cases, this remains inconsistent.

The United Nations has been actively involved in preventing violence against women and girls. The Beijing Platform for Action identifies violence against women as one of its critical areas and has prompted two-thirds of countries to adopt laws prohibiting violence against women and girls. Further, sustainable development goal 5 aims to achieve gender equality by 2030, which includes ending violence against women and girls and ending forced marriages.⁸⁶

In June 2016, the UN called on the Pakistan government to act against honour killings and offered assistance. Although the United Nations has repeatedly addressed crimes committed in the name of honour within its broader efforts to combat violence against

⁸⁴ Conversation with interlocutor, July 24, 2024.

⁸⁵ Ibid.

⁸⁶ United Nations Women at UC Davis, "Davis Model United Nations Conference XV," pp. 6–14.

women, dedicated international mechanisms specifically focused on honour killings remain limited.⁸⁷

Against this broader international background, the analysis now returns to Germany to examine how the legal system has addressed the particular challenges posed by honour-related motives and cultural considerations in criminal cases.

Struggle to Address Honour Killings: Cultural Values and Legal Standards

In Germany, honour killings have often been addressed within the broader framework of domestic or gender-based violence rather than as a distinct category of violence shaped by cultural and social factors. The motive underlying an honour killing is central to understanding the offence; from a criminal-law perspective, however, the legal assessment of the perpetrator's motive is decisive for distinguishing murder from manslaughter. The Federal Court of Justice (Bundesgerichtshof – BGH) has had to determine when an honour-related motive constitutes a “base motive” (niedriger Beweggrund) within the meaning of German murder law.⁸⁸ “Honour” is recognised as a personal legal interest (persönliches Rechtsgut) capable of being infringed, although the precise scope of such protection remains contested.⁸⁹ Under § 211 StGB, motives such as greed, sexual gratification, the intention to facilitate or conceal another offence, and other “base motives” may qualify an unlawful killing as murder rather than manslaughter.⁹⁰ In some earlier cases, courts treated the perpetrator's cultural background as relevant to the assessment of motive, occasionally resulting in convictions for manslaughter rather than murder. Under contemporary German legal standards, killing in order to restore perceived family honour is generally regarded as morally reprehensible and capable of constituting a “base motive.”⁹¹

A turning point in legal interpretation occurred when the Federal Court (BGH) ruled that killing someone to restore one's honour is unequivocally classified as murder, irrespective of the cultural background of the accused.⁹² The BGH overturned a decision made by the Landgericht Frankfurt, which had accepted the argument that two defendants who killed a woman for their family's honour did not meet the base motive requirement for murder due to their cultural values.⁹³ This landmark ruling emphasises that German legal standards should prevail when judging the motives of the accused, although cultural factors may remain relevant to the subjective assessment of whether the accused appreciated the wrongfulness of the conduct.⁹⁴ This jurisprudence supports a more consistent approach to honour-related motives and limits the extent to which cultural background may operate as a mitigating consideration.

⁸⁷ Ibid.

⁸⁸ Strümpel, Nadine. "Searching for a Coherent Legal Approach to 'Honour Killings' in the UK: Cultural Considerations at Court and the Potential of the Loss of Self-Control Defence." Master Class 2013–15, Centre for British Studies, Humboldt University Berlin, 2015.

⁸⁹ Ibid.

⁹⁰ Ibid.

⁹¹ Strümpel, “Searching for a Coherent Legal Approach to ‘Honour Killings’ in the UK.”

⁹² Ibid.

⁹³ Ibid.

⁹⁴ Ibid.

An illustrative case in this context is that of a Turkish husband who, in 2004, killed his German Turkish wife with 48 stab wounds because she sought a divorce. The defendant argued that, according to his cultural beliefs, killing his wife was his right and duty. However, the BGH held that the perpetrator's cultural background should not determine whether the motive objectively qualifies as a “base motive” (*niedriger Beweggrund*). Instead, the court should consider the individual circumstances of the defendant alongside societal norms in Germany. Ultimately, the court ruled that killing for the restoration of honour is morally reprehensible and can generally be classified as murder driven by low motives. This decision marked a significant shift towards stricter sentencing for honour killings in Germany.⁹⁵

Despite these judicial advancements, there remains a belief among some German scholars that honour violence will diminish once migrants have fully integrated into German culture. They argue that cases among second and third generations are largely free from honour violence.⁹⁶ However, integration can create tensions within families, particularly for second and third generation immigrants exposed to Western values, as they may feel pressured to adapt while simultaneously attempting to maintain traditional customs. Such intergenerational tensions may, in some cases, contribute to conflict within families and potentially to honour-related violence. Such occurrences have been reported in various countries, including the UK and Canada. Additionally, conflicts may arise between first- and second-generation immigrants, leading the latter to take drastic actions to preserve their traditional value system amidst Western influences.⁹⁷

The intensity of these cultural conflicts can be exacerbated by the fact that many migrants in Germany live in highly concentrated communities, often caught between the pressures of integration and exclusion. The traditional notion of honour remains significantly important within these communities, where the repercussions of tarnishing this honour can be dire. These tensions may be intensified where migrant communities experience both pressure to integrate and social exclusion. In such contexts, traditional concepts of family honour may retain particular significance, and conflicts surrounding perceived violations of honour can have serious consequences.⁹⁸

Reducing honour-related violence to a purely migrant or cultural problem risks obscuring its broader gendered, social, and legal dimensions. A more comprehensive approach should therefore recognise honour-based violence as both a culturally situated phenomenon and a form of gender-based violence requiring informed legal, social, and preventive responses.

The legal treatment of honour killings, however, cannot be considered solely through the substantive rules of criminal law. Because courts are required to assess motive, cultural background, and individual culpability in such cases, the institutional position and independence of the German judiciary also form part of the broader legal context. It is

⁹⁵ Ibid.

⁹⁶ Oberwittler and Kasselt, “Ehrenmorde in Deutschland,” p. 230.

⁹⁷ Strümpel, “Searching for a Coherent Legal Approach to ‘Honour Killings’ in the UK.”

⁹⁸ Tonio Postel, “German Muslims: Caught between Integration and Exclusion,” Goethe-Institut, January 2018, <https://www.goethe.de/ins/id/en/kul/ges/21151787.html>; see also Hyphen, “The German Far Right Wants to Return Migrants,” 12 February 2024, <https://hyphenonline.com/2024/02/12/the-german-far-right-wants-to-return-migrants/> (accessed 24 July 2024).

therefore useful to consider how judicial independence developed in Germany and how historical structures continue to shape contemporary debates concerning the administration of justice.

The Evolution of Judicial Independence in Germany: From Historical Constraints to Modern Challenges

Historically, the development of judicial independence in Germany was closely connected to the relationship between the judiciary and political authority. Demands for greater judicial independence emerged prominently during the nineteenth century, including at the Hambach Festival in 1832, and were subsequently reflected in the Paulskirche Constitution of 1848. The judicial reforms introduced in 1879 sought to institutionalise judicial independence, although the structure of judicial administration continued to permit forms of executive influence. Historically, senior judicial positions were also frequently occupied by individuals with previous experience in the public prosecution service, an institutional environment characterised by hierarchical structures and obligations to follow superior instructions.⁹⁹

Entry into the judiciary historically required a lengthy and financially demanding period of education and professional training, which disproportionately favoured candidates from economically privileged backgrounds. Although the Weimar Republic opened judicial careers to women, female judges encountered substantial resistance within the predominantly male legal profession. These advances were subsequently reversed under National Socialism.¹⁰⁰

Certain structural questions concerning judicial administration and representation have persisted in subsequent debates about reform. Since the 1960s, discussions have increasingly addressed the composition of the judiciary, institutional autonomy, and gender representation. Although the representation of women within the legal profession and judiciary has increased considerably, questions concerning equality and institutional structure remain relevant.¹⁰¹

The institutional administration of the German judiciary differs from systems in which judicial councils exercise extensive autonomous control over judicial administration. Within German courts, cases are allocated according to predetermined rules adopted by judicial bodies, while ministries of justice retain significant responsibilities for budgets, personnel, and judicial administration. Public prosecutors occupy a different institutional position and are subject to hierarchical structures within the justice administration. Reform proposals in several Länder have sought to strengthen institutional judicial autonomy, particularly in relation to administration and budgetary responsibility.¹⁰²

⁹⁹ Hannes Wolff, “Tagungsbericht: Unabhängige Justiz? Traditionen deutscher und europäischer Justizverwaltung,” H-Soz-Kult, 3 May 2019, <https://www.hsozkult.de/conferencereport/id/fdkn-126830>.

¹⁰⁰ Ibid.

¹⁰¹ Ibid.

¹⁰² Ibid.

Judicial independence is a fundamental principle enshrined in the German Constitution, particularly Article 97 of the Basic Law (Grundgesetz). Article 97 guarantees that judges operate independently and are bound solely by the law. It outlines the conditions under which judges may be dismissed, suspended, or transferred, underscoring that such actions must be grounded in judicial decisions and legal statutes. This assurance extends to both federal and state judges.¹⁰³

The German judiciary comprises a combination of federal and state courts, with significant cases allowing for appeals from state courts to federal courts. Additionally, state constitutions echo Article 97 to safeguard the independence of state judges. The legal status of judges is further elaborated through federal legislation such as the Federal Judges Act and the Judicature Act, which bolster the principles established in the Basic Law. The status of state judges is governed by state constitutions and specific state regulations.¹⁰⁴

Judicial independence encompasses both substantive independence (sachliche Unabhängigkeit), under which judges are not subject to instructions concerning their judicial decisions, and personal independence (persönliche Unabhängigkeit), which protects judges—particularly those appointed for life—against arbitrary dismissal or transfer. Nevertheless, concerns about political influence remain, as political actors play a significant role in the appointment and promotion of judges through judicial selection processes. While such political involvement may help ensure that judicial appointments reflect broader societal values, it also raises questions regarding the institutional independence and perceived objectivity of the judiciary.¹⁰⁵

Legal scholars emphasize the importance of personal attributes for judges, as they must enforce laws impartially, irrespective of their personal beliefs. Although judges are subject to mechanisms of professional oversight and may face disciplinary consequences for misconduct, the relationship between judicial independence and external accountability remains the subject of scholarly debate. European judicial institutions, particularly the European Court of Human Rights and the Court of Justice of the European Union, also provide supranational review within their respective jurisdictions.¹⁰⁶

In his article,¹⁰⁷ Prof. Dr. Patrick C. R. Terry, who has served as a judge in Southern Germany for several years, discusses the current state of judicial independence in Germany.

¹⁰³ Anja Seibert-Fohr, "Constitutional Guarantees of Judicial Independence in Germany," in *Recent Trends in German and European Constitutional Law*, ed. E. Riedel and R. Wolfrum (Springer, 2006), pp. 267–287, <https://ssrn.com/abstract=1706565> (accessed 7 August 2024).

¹⁰⁴ Ibid.

¹⁰⁵ Deutsche Welle, "How Independent Are German Judges?," *Law and Justice*, 8 May 2017, <https://p.dw.com/p/2hkcZ> (accessed 7 August 2024).

¹⁰⁶ Ibid.

¹⁰⁷ Terry, Patrick C. R. "Judicial Independence in Germany." *Law and the World*, no. 2, 2015, pp. 33–36; see Groß, Thomas: *Die institutionelle Unabhängigkeit der Justiz in Deutschland – ein Defizitbefund*, *VerfBlog*, 2019/6/06, <https://verfassungsblog.de/die-institutionelle-unabhaengigkeit-der-justiz-in-deutschland-ein-defizitbefund/>, <https://doi.org/10.17176/20190606-165834-0>.

Terry identifies a tension between the strong protection afforded to judges in the exercise of their adjudicative functions and the institutional role of the executive in judicial administration. He observes that tenured judges enjoy both substantive and personal independence, including protection against involuntary dismissal or reassignment. By contrast, newly appointed judges generally undergo a probationary period of several years, during which their professional position and prospects for permanent appointment remain more closely connected to executive decision-making.¹⁰⁸

Terry further distinguishes the position of public prosecutors, who, as civil servants operating within a hierarchical structure, do not enjoy the same degree of institutional independence as judges. He also identifies the executive's role in judicial appointments and promotions as a continuing structural concern, notwithstanding the participation of judicial bodies in aspects of the appointment and promotion process.¹⁰⁹

The historical and institutional development of judicial independence in Germany therefore provides an important broader context for examining the adjudication of honour-killing cases. Although Article 97 of the Basic Law guarantees judicial independence, the continuing role of political and executive institutions in aspects of judicial administration, appointment, and promotion has generated scholarly debate concerning the institutional independence of the judiciary. These structural features do not, in themselves, establish political influence over individual judicial decisions. Nevertheless, my examination of media reports, judicial responses, and the broader public discourse surrounding honour-related violence raises questions as to whether judicial approaches may, in some cases, reflect or correspond with prevailing political and socio-cultural discourse. This question emerged alongside the doctrinal analysis undertaken in this study and constitutes an additional dimension of this research. In particular, apparent shifts in the treatment of cultural considerations in cases involving migrant perpetrators warrant closer examination of the relationship between judicial independence, cultural sensitivity, public discourse, and the broader political environment.

Understanding these interactions requires moving beyond the institutional structure of the judiciary to consider the wider social context in which judicial decision-making takes place, particularly Germany's evolving debates concerning migration, multiculturalism, integration, and national identity.

Multiculturalism and Migration in Germany: Navigating Integration, Identity, and Judicial Independence

This section examines the complex relationship between migration, multiculturalism, integration, and national identity in Germany, particularly in the context of migration and refugee movements. Drawing on legal-anthropological empirical methods, including participant observation, individual and group interviews, focus-group discussions, media

¹⁰⁸ Ibid.

¹⁰⁹ Ibid.

reports, and legal materials, I have examined how Germans and migrants understand integration and multiculturalism and how these perceptions may intersect with broader political and judicial discourse. Particular attention is given to the tension between expectations of migrant integration and the extent to which migrant cultural backgrounds are themselves recognised and understood within German society.

Against this background, the analysis considers whether legal, cultural, and socio-political factors may also influence perceptions of judicial responses to migrant offenders, particularly in honour-killing cases. The objective is not to presume political influence over individual judicial decisions, but to examine how political, social, historical, and cultural contexts may interact with legal decision-making and public perceptions of judicial independence.

Based on a comprehensive examination of media reports, statements from women's rights activists, statements from interlocutors, research papers, and data on honour killings to date, as well as the interpretations and judgments of the German Supreme Court regarding honour-related violence, it is evident that there is a pressing need for a nuanced understanding of the cultural practices or legal mindset of individuals with a migration background rooted in their country of origin, rather than relying solely on the German court's discretion to acknowledge or disregard the cultural context involved in cases of honour violence.

The apparent inconsistency with which cultural elements have been considered in honour-violence cases may not adequately address the complexities and nuances of these situations. Instead, it is essential to adopt a more informed and culturally sensitive approach that acknowledges the role of migrant cultural practices in shaping individual behaviours and beliefs. By doing so, the German legal system can better address the underlying factors contributing to honour violence and provide more effective support to victims.

Furthermore, this would underscore the importance of engaging with the cultural heritage and legal traditions of individuals with a migration background, rather than approaching gender equality and human rights exclusively through assumptions derived from the dominant cultural context, without sufficient consideration of the cultural backgrounds involved. A more holistic understanding of these factors will enable the German legal system to develop more effective strategies for preventing and addressing honour violence, ultimately promoting greater social cohesion and justice for all individuals affected.

In Germany there is a pattern of violence against women from migrant backgrounds that is often stigmatized. This is evident in the way some forms of honour violence are characterised as “cultural practices”, which perpetuates harmful stereotypes against

minority groups. This approach creates gendered and racialized categories that further marginalize the affected women.¹¹⁰

To address this issue, greater consideration should be given to the use of cultural expertise. This approach allows for a more nuanced understanding of the criminal acts without reinforcing harmful stereotypes. It is crucial to distinguish between atypical and typical honour violence cases. Atypical cases often lack solid evidence, whereas typical cases involve honour violence that takes place on German soil or abroad.¹¹¹ Engaging with cultural expertise is vital in handling both atypical and typical honour violence court cases. It helps to avoid unfair court outcomes that can cause harm to families and individuals, provides assistance when courts are trying to determine what likely occurred or what can be established beyond reasonable doubt in situations involving unfamiliar cultural dimensions. Additionally, cultural expertise minimizes the stigmatizing effect of criminalizing a practice associated with a particular group, thereby avoiding racist conceptions.¹¹² Cultural knowledge and understanding can help neutralize the adverse effects of biased outcomes, fostering a more nuanced comprehension of honour violence and its cultural backgrounds, ultimately reducing harm and promoting fairness.

Since November 2018, EURO-EXPERT's data-collectors have disseminated a survey to judges, lawyers, experts, and beneficiaries of cultural expertise. This endeavour has enabled the gathering of valuable insights from a diverse range of stakeholders. Through the link available on the Faculty of Law/University of Oxford website,¹¹³ key probabilities related to the situation of honour killings and the reliance on cultural experts in Germany can be examined.

The EURO-EXPERT survey demonstrates that the use of cultural expertise in German legal proceedings remains limited. Of the judges and lawyers responding to the question concerning the frequency with which they had instructed cultural experts, 56% (239 respondents) reported having instructed fewer than ten, while 42% (177 respondents) selected "Other"; all but two of the latter clarified that they had never instructed a cultural expert. The survey further found that the most common fields in which cultural expertise was used were Refugee and Asylum Law (16%), Family Law (14%), Immigration Law (14%), and Criminal Law (11%)¹¹⁴

The most common setting for the use of cultural expertise was "in court" (44%), followed by "Other" (14%), "through NGOs" (11%), and "out of court" (8%). The most frequently identified type of expert was "Other" (45%), followed by country experts (26%), native-language speakers (14%), and university professors (11%). The most common factor

¹¹⁰ Mestre i Mestre, RM, and S. Johnsdotter. "Court Cases, Cultural Expertise, and 'Female Genital Mutilation' in Europe." Special Issue: Cultural Expertise and Socio-Legal Studies, vol. 78, 2019, pp. 95–113.

¹¹¹ Ibid.

¹¹² Ibid.

¹¹³ University of Oxford, Faculty of Law, "Cultural Expertise in Europe: What Is It Useful For? (EURO-EXPERT)," 20 May 2019, <https://www.law.ox.ac.uk/research-and-subject-groups/cultural-expertise-europe-what-useful/mapping-cultural-expertise-law> (accessed 24 July 2024).

¹¹⁴ Ibid.

influencing the decision to appoint an expert was that the appointment was advised by the court (19%). These findings indicate that courts themselves play an important role in determining when cultural expertise is introduced into legal proceedings.¹¹⁵

The survey found it particularly difficult to reach beneficiaries and obtain responses, especially in Germany. Out of all the respondents, only one person from Germany was identified as a Beneficiary, which is only 0.2% of the total sample. There were several reasons for this low response rate from beneficiaries. Many people who may have been beneficiaries did not speak German well enough to complete the survey.¹¹⁶ Beneficiaries are vulnerable individuals who are involved in legal cases, so it was important to respect their privacy and not contact them directly. Instead, the researchers asked lawyers and judges to inform beneficiaries about the survey. There is no central organisation or association that represents beneficiaries, making it hard to reach them.¹¹⁷

Moreover, the political climate illustrates how lingering historical guilt from Germany's past influences contemporary views on migration and national identity, resulting in many individuals stifling opposing viewpoints on the issue. In Germany, concepts such as culture, ethnicity, nationality, race, and religion are highly sensitive topics. Following the significant migration influx since 2015, especially due to the Syrian refugee crisis and the continuing movement of individuals from Ukraine, the German government's policies promote diversity and multiculturalism. As a result, some interlocutors perceived criticism of migration or expressions of nationalist views as socially taboo.¹¹⁸

The German government has repeatedly framed demographic change and labour-market needs as important considerations in migration policy, while the reception of asylum seekers has also been presented in terms of humanitarian responsibility.¹¹⁹ These political and demographic considerations form part of the broader context in which public attitudes towards migration and multiculturalism have developed in Germany.

Several interlocutors associated contemporary attitudes towards migration and national identity with Germany's historical experience of National Socialism. In their accounts, criticism of migration policy or expressions of national identity could be socially associated with right-wing politics or, in more extreme cases, with nationalist or neo-Nazi sympathies. This perception must also be understood against the particular historical

¹¹⁵ Ibid.

¹¹⁶ Ibid.

¹¹⁷ Ibid.

¹¹⁸ Deutsche Welle, "Germany to Host Ukraine Refugees of All Nationalities," 3 June 2022, <https://www.dw.com/en/germany-to-accept-refugees-from-ukraine-regardless-of-nationality/a-61030647> (accessed 30 July 2024).

¹¹⁹ American German Institute, "Germany Faces a Challenging Demographic Situation," 19 September 2023, <https://americangerman.institute/2023/09/germany-faces-a-challenging-demographic-situation/> (accessed 30 July 2024).

sensitivity surrounding nationalist expressions such as “Germany for Germans,” which have become associated with right-wing and extremist political discourse.¹²⁰

These accounts should not be interpreted as representative of German society as a whole; rather, they illustrate how some participants in this study perceived the boundaries of acceptable public discourse concerning migration and national identity.

The interviews further revealed a perceived distinction between publicly expressed support for multiculturalism and participants' understandings of what multiculturalism entails in everyday social life. Some interlocutors suggested that individuals may be reluctant to express critical views about migration because of concerns about social disapproval or being associated with right-wing political positions. At the same time, participants differed in their understanding of multiculturalism, with some describing it primarily in terms of people of different nationalities or ethnic backgrounds living within the same society.¹²¹

Two respondents stated, “In our neighbourhood, we have a Portuguese person, a Russian, an African, someone from Indonesia, and one from Madagascar... our surroundings are quite diverse.” When asked if they knew these individuals personally, they replied, “Not really, only the person from Madagascar.” In response to the question about how long these individuals have been living there, they said, “They’ve been here for several years, maybe 5 or 6, but we haven’t spoken to each other.” When asked if all these migrants communicated with one another, they replied, “We have no idea.”¹²²

For some, consuming staple foods from various countries feels like experiencing a multicultural environment. An interlocutor expressed their views in these words:

“When I was fourteen, I ate spaghetti (Italy) for my first time. I cooked it for some friends at home in the little village Bielefeld-Jöllenbeck. We felt great, modern and open for the world. And then Pommes frites (French) in the outdoor pool in Jöllenbeck. With seventeen rice with my first boyfriend in a Chinese restaurant in Bielefeld. Many years later Döner (Turkey).....Look at Great Britain, the Netherlands, the USA. These countries have many different people with many cultures..... I am not afraid for foreign infiltration.”¹²³

In response to the question whether you know these individuals personally or have interacted with them, the reply was, “Not really, just one. It’s not essential to know them personally; people are essentially the same everywhere. Learning German is important for understanding the culture here.”¹²⁴

These accounts illustrate an important distinction between demographic diversity and substantive intercultural engagement. Living in a socially diverse neighbourhood does

¹²⁰ Federal Ministry of the Interior and Community (Germany), “Major Blow to the Right-Wing Extremist Scene: Federal Interior Minister Nancy Faeser Bans COMPACT Magazine,” 16 July 2024, <https://www.bmi.bund.de/SharedDocs/pressemitteilungen/EN/2024/07/executive1-en.html> (accessed 30 July 2024).

¹²¹ Observation based on interview, July 20, 2024.

¹²² Interview with respondents, July 20, 2024.

¹²³ Conversation with respondent, July 20, 2024.

¹²⁴ Ibid.

not necessarily imply meaningful interaction with individuals from different cultural backgrounds. In this sense, multiculturalism may describe the coexistence of different populations without necessarily producing reciprocal cultural understanding.

Several interlocutors described integration in Germany as placing considerable emphasis on migrants' adaptation, particularly through German-language acquisition. At the same time, some migrant interlocutors perceived comparatively limited expectations of reciprocal engagement with their own cultural backgrounds.

Even Germans from different regions of the country face challenges in integrating with one another, which raises concerns about the expectations placed on migrants to assimilate into a culture that is itself not uniform. While it is essential for newcomers to learn the language and adhere to the laws, imposing rigid standards regarding their behaviour, the culture they should adopt,¹²⁵ or the speed at which they should learn German is unjust.

An interlocutor shared their views on the linguistic pressure and discrimination experienced: "I moved to Germany from Sri Lanka on a marriage visa, and right away, my husband began pressuring me to learn German. He invested about 3000 euros in language classes that covered all modules and advanced levels. However, I struggled to keep up. Having only completed high school in Sri Lanka, adapting to a new country and culture was overwhelming. Eventually, he started verbally abusing me for my lack of progress and would insult me in front of his family and friends. It wasn't that I didn't want to learn the language; I just needed more time, which he couldn't grasp. His friends and family also put constant pressure on me, asking about my German language skills. While they spoke a bit of English, they insisted that I learn German. This situation led to ongoing arguments between my husband and me. Now, I am separated for different reasons, but the harassment and trauma I experienced during that time are unforgettable. Despite that, I now speak German."¹²⁶

Acquiring a new language can be particularly challenging for the elderly, and it requires time, patience, and, importantly, a willingness to engage with the language. Migrants may require a similar amount of time to learn a new language. Language acquisition is not something that can be forced; it involves emotions and a personal connection to the language. Pressuring individuals to learn a language while also discriminating against them based on their linguistic abilities is inherently unfair.

If Germany intends to prioritize language learning, it should consider implementing entry restrictions to allow only individuals who are already proficient in German. If such a policy is not in place, then newcomers should be allowed the time they need to learn the language. Inviting migrants or asylum seekers into the country and subsequently pressuring them to learn the language or subjecting them to mental strain over it is neither fair nor just; such pressure may be experienced by migrants as exclusionary or discriminatory.¹²⁷

¹²⁵ Houghton, Nic. "Integrating the Germans." 40percentgerman, 25 July 2018, <https://40percentgerman.com/home/2018/7/25/integrating-the-germans-nlaxw-2kcrc> (accessed 31 July 2024).

¹²⁶ Conversation with respondent, June 13, 2024.

¹²⁷ A. Adler, "Language Discrimination in Germany: When Evaluation Influences Objective Counting," *Journal of Language and Discrimination*, vol. 3, no. 2 (2019): 232–253, <https://doi.org/10.1558/jld.39952>.

The findings suggest that linguistic integration occupies a particularly prominent position in German understandings of migrant integration, at times functioning as a proxy for broader cultural belonging.

One interlocutor suggested that judges might share similar attitudes and that this could potentially contribute to inconsistencies in judicial decisions involving migrant defendants.

These observations also raise the question of how linguistic and cultural difference is addressed within legal institutions. Although German courts provide interpreters where legally required, German remains the official language of judicial proceedings. One interlocutor described receiving correspondence from a court requiring communication in German after he had submitted material in English.¹²⁸ Such experiences illustrate the practical tension between the uniform linguistic requirements of legal institutions and the circumstances of individuals with migrant backgrounds.

This insistence on language is understandable, as courts cannot accommodate individual preferences or relaxations regarding language learning for those coming to Germany. It is essential for politicians to recognise the challenges faced by both the judiciary and migrants.

One German respondent I interacted with described his opinion as follows: "Integration, multiculturalism, diversity – these terms are used solely to promote a political agenda. Most Germans support this agenda without knowing the cultures of migrants or not wanting to learn about them. They think you're in their country now, so you should learn the language and entertain us or leave the country altogether."¹²⁹

Another interlocutor stated: "We have been brainwashed by government agendas and political parties, with both right- and left-wing factions promoting migration for their own interests without genuinely understanding or caring about migrant mindset. We want migrants to work for us as slaves but not to overpower us. This is exploitation. This is modern-day slavery."

In 2015, former German Chancellor Angela Merkel made the contentious decision to allow a substantial influx of refugees, particularly from the Syrian civil war, under the slogan "Wir schaffen das" ("We can do this"). This decision sparked intense debate, as it was made without formal approval from the cabinet or the legislature, raising concerns about its legal and constitutional implications.¹³⁰ Supporters hailed Merkel's humanitarian stance, while critics argued for a broader consensus and expressed concerns over the lack of accountability. Initially, the decision received considerable public and political support; however, it subsequently encountered significant opposition. This development is one of several factors contributing to the ongoing disputes surrounding refugee, migration, and immigration policies today, and it has also been

¹²⁸ Conversation with respondent, 20 July 2024.

¹²⁹ Conversation with interlocutor, July 20, 2024.

¹³⁰ "Merkels Alleingang war ein Akt der Selbstermächtigung," *Welt*, 13 January 2016, <https://www.welt.de/politik/deutschland/article150947586/Merkels-Alleingang-war-ein-Akt-der-Selbstermaechtigung.html>; Hans Monath and Stephan Haselberger, "Demokratieforscher Wolfgang Merkel: 'Die Kanzlerin hat die Bürger entmündigt'," *Tagesspiegel*, 19 February 2016, <https://www.tagesspiegel.de/politik/die-kanzlerin-hat-die-buerger-entmündigt-3698134.html>; see also Wolfram Weimer, "Person der Woche: Udo di Fabio – Der Richter der Kanzlerin," *n-tv*, 12 January 2016, https://www.n-tv.de/politik/politik_person_der_woche/Der-Richter-der-Kanzlerin-article16746101.html (accessed 1 August 2024).

identified as one factor contributing to the growing electoral appeal of the Alternative für Deutschland (AfD). While government policy supports migration, migrants in Germany face difficulties in securing employment.

Angela Merkel's decision in 2015 to accept a significant number of asylum seekers into Germany may not have resulted in a permanent increase in migration,¹³¹ but it established a precedent that migrants and refugees are welcome in the country. For some migrants interviewed in this study, the experience of settlement in Germany did not correspond with their initial expectations concerning employment, integration, or social acceptance. While migration itself is not new to Germany, the surge of asylum seekers and migrants following the 2015 decision prompted many to reconsider their options and eventually seek opportunities elsewhere.

A PhD holder from the Faculty of Engineering shared his experience:

"Germany is welcoming migrants to work, but as a Mechanical Engineer, I've struggled to find a job. Employers consistently tell me they require fluent German speakers. I have submitted more than 100 applications without success. All job postings seem to prioritize candidates who speak fluent German, which I find quite perplexing. It appears to be a tactic to discourage migrants. While politics encourages migration, German employers seem to employ these strategies to keep migrants at bay."¹³²

A master's graduate recounted her experience:

"I achieved a C1 level in German, the highest proficiency, and I've been here for 10 years. I've been seeking office jobs or even lesser roles, but in interviews, if there are 10 candidates of German origin, they are favoured over me due to my migration background. I don't see any valid reason for my rejection, especially since I have the qualifications and speak German. To date, I have not found a job and am now dependent on my husband while doing some freelancing work on the side."¹³³

A postdoctoral researcher of migrant background voiced their dissent regarding Angela Merkel's decision stating, "What she has done falls short for refugees and migrants. She should have permitted many more to enter the country. Many have been denied their rights. No human is illegal. We need open borders."¹³⁴

On the other hand, some individuals expressed their support for and admiration of Merkel's decision.

A high school teacher stated, "I disagree with the judges and professors who argue that Merkel made a mistake by opening the borders in 2015. In my opinion, she did the right thing based on moral obligations."¹³⁵

Following the developments of 2015, public debate in Germany increasingly focused on migration, crime, social integration, irregular migration, and public safety. Political and

¹³¹ Tjaden, Jasper, and Tobias Heidland. "Did Merkel's 2015 Decision Attract More Migration to Germany?" *European Journal of Political Research*, vol. 64, no. 1, 2025, pp. 389–405. <https://doi.org/10.1111/1475-6765.12669>.

¹³² Conversation with interlocutor, February 24, 2024.

¹³³ Conversation with interlocutor, February 20, 2024.

¹³⁴ Conversation with interlocutor, July 23, 2024.

¹³⁵ Ibid.

media discourse concerning these issues contributed to broader controversy surrounding immigration and asylum policy.¹³⁶

Several interlocutors perceived the boundaries of acceptable political discourse as asymmetrical, particularly in relation to right-wing positions on migration. They described a fear of social ostracism or association with National Socialism when expressing criticism of migration policy. These accounts represent participants' perceptions and should not be interpreted as evidence that right-wing political expression is generally prohibited in Germany. Rather, they indicate that some participants perceived considerable social pressure surrounding the expression of critical views on migration and asylum policy. Some interlocutors associated this reluctance with Germany's historical experience of National Socialism and a continuing sensitivity surrounding expressions of nationalism and national identity.

Legal scholars believe that it is important to maintain a balance between protecting judicial independence and upholding democratic values against extremist right-wing influences in the judiciary. The contemporary debate examined by Sanders and Faltinat focuses particularly on the treatment of judges associated with extreme-right political positions. The authors also recall that, historically, left-wing and progressive civil servants faced professional restrictions under the *Radikalenerlass* of the 1970s. Their analysis therefore illustrates how the relationship between political ideology, constitutional loyalty, and judicial independence has shifted over time and continues to raise difficult questions concerning the boundaries of permissible political activity by judges.¹³⁷

Germany's approach allows judges to engage in political activity, but complications arise when their actions or statements during their political tenure raise doubts about their judicial impartiality. The reinstatement process involves significant legal debate over how to interpret existing laws concerning the re-entry of judges with problematic political histories. For instance, in Jens Maier's case, the Disciplinary Court agreed to his early retirement due to his extremist views, deeming that his presence on the bench would undermine public trust in the judiciary. In contrast, Birgit Malsack-Winkemann was initially reinstated but faces ongoing legal scrutiny after being implicated in a coup plot associated with far-right organisations.¹³⁸

Taken together, the empirical and doctrinal material examined in this section demonstrates the complexity of the relationship between migration, cultural difference, integration, and legal institutions in Germany. The interviews reveal divergent perceptions of multiculturalism, linguistic integration, migration policy, political

¹³⁶ Thomas K. Bauer, "Migration, Sozialstaat und Zuwanderungspolitik," *Vierteljahrshefte zur Wirtschaftsforschung*, vol. 71, no. 2 (2002), pp. 249–271; Corrado Giulietti, "The Welfare Magnet Hypothesis and the Welfare Take-Up of Migrants," *IZA World of Labor* (2014); Dorte Sindbjerg Martinsen and Benjamin Werner, "No Welfare Magnets – Free Movement and Cross-Border Welfare in Germany and Denmark Compared," *Journal of European Public Policy*, vol. 26, no. 5 (2019).

¹³⁷ Anne Sanders and Elisabeth Faltinat, "Judges, Political Mandates and Judicial Independence in Germany: How to Deal with Radicalised Judges?," *Verfassungsblog*, 20 January 2023, <https://verfassungsblog.de/judges-political-mandates-and-judicial-independence-in-germany/>, <https://doi.org/10.17176/20230120-220008-0>.

¹³⁸ *Ibid.*

discourse, and institutional neutrality. They also demonstrate that the coexistence of culturally diverse populations does not necessarily result in reciprocal cultural understanding.

These findings are relevant to the adjudication of honour-related violence because such cases require legal institutions to evaluate conduct that may involve cultural concepts unfamiliar to the dominant legal environment. The limited use of cultural expertise identified above raises questions concerning whether courts possess sufficient contextual knowledge to distinguish cultural explanation from cultural justification without reproducing stereotypes. At the same time, cultural background cannot operate as a justification for violence or diminish the equal protection owed to victims.

The material examined here does not establish that German judges systematically align their decisions with governmental or political preferences. Rather, it raises a broader socio-legal question concerning the extent to which judicial reasoning, like other forms of institutional decision-making, operates within a wider political, historical, and cultural environment. In the context of honour killings involving migrants, further empirical research is therefore required to examine whether—and, if so, how—these broader contexts influence judicial approaches to cultural evidence, criminal responsibility, and sentencing.

These broader findings concerning migration, integration, and multiculturalism therefore provide the socio-cultural context for the following examination of how cultural difference may become relevant within judicial decision-making itself.

Cultural Context and Judicial Decision-Making

The circumstances in Germany highlight a complex and nuanced interaction between cultural understanding, judicial decision-making, and the broader socio-political environment. This interplay is particularly relevant to cases involving honour-related violence among individuals with migrant backgrounds, where courts may be required to evaluate conduct shaped by cultural concepts that are unfamiliar to the dominant legal environment. The implications of this context for judicial decision-making merit careful consideration, particularly in socially and politically sensitive cases. Consequently, several factors may influence how such cases are understood and adjudicated.

Honour-related violence may be deeply rooted in the social and cultural context of the individuals involved. Judges may encounter difficulties in interpreting these dimensions without adequate cultural knowledge, particularly where unfamiliar concepts of family honour, gender roles, collective responsibility, or social pressure are relevant to understanding the circumstances of an offence.¹³⁹ Judges, like other members of society,

¹³⁹ Judicial Commission of New South Wales, “Cultural Diversity: Reflections on the Role of the Judge in Ensuring a Fair Trial,” Judicial Council on Diversity and Inclusion Conference, Sydney, 13–14 March 2015, https://www.judcom.nsw.gov.au/publications/benchbks/judicial_officers/cultural_diversity_ensuring_fair_trial.html (accessed 5 August 2024).

may also be influenced by broader societal narratives concerning migration and cultural practices. If honour-related violence is assessed exclusively through the assumptions of the dominant cultural framework, relevant social and cultural dimensions of the case may be insufficiently understood or contextualised.¹⁴⁰

The political climate in Germany reflects a complex relationship with migration, multiculturalism, and integration. Judges, as members of society, do not operate entirely outside the broader social environment in which legal institutions function. Research concerning judicial decision-making has examined the potential influence of public opinion and media attention on judges and the strategies judges employ in responding to such pressures.¹⁴¹ In politically sensitive cases involving migration or honour-related violence, this raises the question of whether broader socio-political narratives may consciously or unconsciously affect the way cases are perceived or framed. Such a possibility should not be equated with direct political interference in judicial decision-making; rather, it highlights the importance of examining the wider social environment within which judicial reasoning takes place.

Media narratives surrounding honour killings and migrant communities may shape the broader social environment in which judicial decision-making occurs. Research has examined how judges perceive media attention and public opinion and how they respond to such external pressures.¹⁴² In highly publicised cases involving migration, gender-based violence, or cultural practices, judges may therefore be confronted with competing public narratives concerning cultural sensitivity, equality before the law, victims' rights, and criminal responsibility. The polarization of public discourse concerning migration may further complicate the adjudication of such cases, particularly where courts must determine what relevance, if any, should be attributed to the cultural background of the accused.¹⁴³

Increasing the availability and appropriate use of cultural expertise in legal proceedings could provide judges with additional contextual knowledge relevant to cases involving unfamiliar cultural practices.¹⁴⁴ The comparatively limited use of cultural expertise identified in existing research suggests that such knowledge is not routinely incorporated into legal proceedings. Cultural experts may assist courts in distinguishing between cultural explanation and cultural justification: cultural context may help explain the social environment surrounding an offence without excusing violence or diminishing the criminal responsibility of the perpetrator. Greater access to appropriate cultural expertise could therefore contribute to more informed judicial reasoning while simultaneously

¹⁴⁰ Ibid.

¹⁴¹ M. Hanych, H. Smekal, and J. Benák, "The Influence of Public Opinion and Media on Judicial Decision-Making: Elite Judges' Perceptions and Strategies," *International Journal for Court Administration*, vol. 14, no. 3 (2023): 2, <https://doi.org/10.36745/ijca.528>.

¹⁴² Ibid.

¹⁴³ Ibid.

¹⁴⁴ Holden, Livia. "Cultural Expertise against the Danger of Judicial Populism in Italy: Cassazione Penale." *Justice and Culture. Legal Arguments to Deal with Multicultural Disputes*, 2019, <https://doi.org/10.5281/zenodo.3843472>.

reducing the risk of cultural stereotyping.¹⁴⁵ Greater access to appropriate cultural expertise could therefore contribute to more informed judicial reasoning while reducing the risk of cultural stereotyping, making its potential role in legal proceedings particularly important to examine.

The Importance of Cultural Expertise in Legal Proceedings

The concept of cultural expertise holds significant relevance in legal proceedings, especially in cases that involve cultural and religious differences. Cultural expertise refers to the specialized knowledge that allows socio-legal scholars or cultural mediators to identify and articulate relevant facts within the specific context of the claimants and litigants for judicial purposes.¹⁴⁶ This concept should not be confused with cultural defense. When cultural experts are appointed in court, they must maintain procedural neutrality and refrain from advocating either explicitly or implicitly for a particular legal outcome. Their responsibility is to elucidate facts, circumstances, and their socio-legal background, adhering closely to specific instructions or inquiries. Cultural expertise can play an important role in facilitating understanding across different cultural and socio-legal contexts.¹⁴⁷ It is not limited to assisting individuals originating from different countries or cultural contexts; rather, it may also be relevant to individuals living within receiving societies whose linguistic, cultural, religious, or social backgrounds differ from those of the dominant society. This expertise can aid judges in engaging with individuals from various cultural backgrounds, moving beyond simply "defending" their cultures or assessing their "authenticity." Instead, cultural expertise serves as a tool for building connections and fostering inclusivity in receiving societies.¹⁴⁸ In recent years, there has been a growing acknowledgment of the importance of cultural expertise in managing diversity. However, this awareness has been slow to reflect in legal proceedings.

Before examining the case on honour killings, it is essential to place the concept within its national and international legislative framework. In many common law jurisdictions, experts are often called upon to explain the laws of other countries and their implications. As such, it is not uncommon for courts to consider information that may be derived from experts knowledgeable about foreign laws and social contexts when addressing social and legal issues in their rulings. By contrast, the role and use of expert evidence concerning foreign law may differ in civil-law jurisdictions, particularly outside matters involving private international law.¹⁴⁹

In cases of honour killings, judges and defense attorneys may seek insights from experts in two primary areas: the societal attitudes and expectations surrounding honour killings in the relevant foreign nation, and the associated laws and practices within that country,

¹⁴⁵ Ibid.

¹⁴⁶ Ibid.

¹⁴⁷ Holden, "Cultural Expertise against the Danger of Judicial Populism in Italy."

¹⁴⁸ Ibid.

¹⁴⁹ Ibid.

all viewed through the specific socio-legal lens.¹⁵⁰ A comprehensive expert report can offer an in-depth understanding of the socio-legal context of honour killings, which are often rooted in patriarchal values from non-European societies that are widely condemned and legally prohibited. The cultural expert would emphasize that no circumstances can justify or excuse such egregious crimes, regardless of cultural or religious contexts. For instance, an expert report may assist judges in understanding how concepts of family honour and gender operate within particular social contexts, while simultaneously explaining that the relevant state legal system may itself criminalize and seek to prevent honour-based violence.¹⁵¹

Additionally, engaging with migrants and refugees from diverse backgrounds can be challenging due to the uniqueness of each individual's history and culture, influenced by their environment, education, and personal experiences. It is therefore important to avoid drawing conclusions solely from an individual's perceived cultural background and instead to consider the individual's particular social circumstances, personal history, education, and experiences.¹⁵²

In professional contexts, such as law, obtaining information on international issues can be complicated by limited resources. In professional legal contexts, obtaining and interpreting information concerning unfamiliar cultural and international contexts may present practical difficulties. Interpreters can facilitate communication, but interpretation alone does not necessarily convey the cultural meanings underlying particular statements or conduct. Reliance on friends or family members as interpreters may create additional difficulties, particularly in legal proceedings.¹⁵³ Furthermore, in forensic psychological or psychiatric assessments involving non-native speakers, important nuances may also be lost through linguistic interpretation, while culturally variable forms of non-verbal communication may further complicate assessment. Consequently, interdisciplinary cooperation among professionals in fields such as law, anthropology, psychology, and psychiatry can contribute to a more informed understanding of culturally complex cases. Recognising the challenges involved in working with individuals from diverse cultural backgrounds and adapting professional approaches accordingly may contribute to more effective assessments and judicial decision-making.¹⁵⁴

Pohlreich (2011)¹⁵⁵ critically examines the treatment of culture-based violence against immigrant women in decisions of the German Federal Court of Justice (BGH). A central concern identified in the analysis is that the cultural background of perpetrators has, in

¹⁵⁰ Ibid.

¹⁵¹ Ibid.

¹⁵² Jahn, Karen. "Rechtskonflikte und forensische Begutachtung in Strafverfahren mit ausländischen Beteiligten aus psychologischer Sicht." Inaugural-Dissertation zur Erlangung des Doktorgrades der Philosophischen Fakultät der Westfälischen Wilhelms-Universität zu Münster (Westf.), 2003.

¹⁵³ Ibid.

¹⁵⁴ Ibid.

¹⁵⁵ Pohlreich, "Culture-Based Violence Against Immigrant Women in German Federal Court of Justice (BGH) Decisions," pp. 383–398.

some cases, been taken into account in ways capable of contributing to more lenient treatment, while comparatively less attention has been paid to the cultural and social position of the victim.¹⁵⁶ This asymmetry raises questions concerning equal protection and consistency in judicial decision-making.

Pohlreich therefore advocates an approach in which cultural considerations do not operate as an automatic basis for mitigating criminal responsibility. Rather, cultural knowledge should assist judges in understanding the circumstances of the case, the social environment in which the conduct occurred, and, where legally relevant, the perpetrator's individual situation.¹⁵⁷ Such contextual understanding should be applied consistently and should include consideration of the victim's position rather than focusing exclusively on the cultural background of the perpetrator.

From this perspective, the value of cultural expertise lies not in providing a “cultural defence,” but in enabling courts to distinguish cultural explanation from cultural justification. Cultural context may contribute to understanding why particular conduct occurred without rendering that conduct legally or morally acceptable. In honour-killing cases, this distinction is particularly important because it permits courts to engage seriously with relevant cultural and social factors while maintaining the fundamental principles of individual criminal responsibility and equal protection under the law.

This raises a central legal question: If culture can be relevant to understanding an honour-related offence but cannot justify the offence, how should law determine where legitimate cultural understanding ends and impermissible cultural justification begins?

Cultural Defence

Cultural expertise should be distinguished from the concept of a “cultural defence,” whereby a defendant seeks to rely on cultural background, beliefs, or practices in explaining or contesting criminal responsibility. The literature distinguishes cultural-defence arguments from established doctrines such as mistake of fact. A cultural-defence argument may arise where a defendant contends that conduct was shaped by norms or practices regarded as acceptable within the defendant's cultural environment and that this background is relevant to the assessment of criminal responsibility. By contrast, a mistake-of-fact argument concerns an honestly held misunderstanding of factual circumstances that may affect the mental element required for an offence.¹⁵⁸ Cultural background may, in particular cases, provide contextual information relevant to assessing whether such a mistake was genuinely held, but it does not itself constitute a mistake of fact.

Critics of a distinct cultural defence argue that its recognition could create unequal treatment under criminal law by permitting immigrant defendants to rely on cultural

¹⁵⁶ Ibid.

¹⁵⁷ Ibid.

¹⁵⁸ Sams, Julia P. "The Availability of the 'Cultural Defense' as an Excuse for Criminal Behavior." *Georgia Journal of International & Comparative Law*, vol. 16, no. 2, 1986, p. 335.

unfamiliarity or culturally derived norms in circumstances in which comparable claims would not be available to other defendants.¹⁵⁹ From this perspective, recognising a separate cultural defence risks creating differential standards of criminal responsibility based on cultural background. A further concern is that broad recognition of such a defence could undermine consistency and equality in the application of criminal law.¹⁶⁰

In the context of honour-related violence, cultural background may therefore be relevant to understanding the social circumstances, beliefs, and pressures surrounding an offence without necessarily providing a justification or excuse for the conduct. Cultural expertise and cultural defence must consequently remain analytically distinct: the former seeks to provide the court with contextual knowledge, whereas the latter raises the more controversial question of whether cultural background should affect criminal responsibility. The recognition of cultural context should not result in different standards of legal protection for victims or undermine the principle that criminal law applies equally to all defendants.¹⁶¹

The preceding discussion demonstrates that questions concerning cultural expertise and cultural defence form part of a broader issue: the extent to which judicial reasoning may be shaped by the political, social, cultural, and ethical environment in which law operates. The following section situates this question within a broader theoretical framework by drawing on the perspectives of legal scholars and philosophers.

Political, Cultural, and Social Dimensions of Judicial Decision-Making: Perspectives from Legal Theory

Legal theory provides a broader framework for understanding variations in legal interpretation and the cultural, political, social, and ethical considerations that may shape judicial reasoning. Judicial independence, although institutionally protected in democratic legal systems, should not necessarily be regarded as immune from political or institutional pressures. As Grove observes, the institutional safeguards supporting judicial independence may themselves be historically contingent and potentially vulnerable to political change.¹⁶²

Numerous legal philosophers and theorists have examined different dimensions of law, judicial reasoning, institutional independence, justice, and the relationship between legal interpretation and social conditions. The following discussion considers the contributions of key figures such as Roscoe Pound, Lon Fuller, H.L.A. Hart, John Rawls, Ronald Dworkin, and Catharine MacKinnon, providing a comparative framework for examining these issues.

¹⁵⁹ Ibid.

¹⁶⁰ Ibid.

¹⁶¹ Ibid.

¹⁶² Grove, Tara Leigh. "The Origins (and Fragility) of Judicial Independence." Faculty Publications, 2018, no. 1887, William & Mary Law School Scholarship Repository, <https://scholarship.law.wm.edu/facpubs/1887>.

Roscoe Pound's sociological jurisprudence emphasised the relationship between law and social realities. His work also addressed the institutional conditions necessary for the administration of justice and the importance of maintaining an appropriate separation between judicial and political functions. According to Pound, judicial decision-making should remain institutionally protected from inappropriate external interference.¹⁶³ He critiqued historical instances of legislative encroachment on judicial authority, asserting that such interferences undermine the equitable administration of justice that independent courts strive to uphold.¹⁶⁴

Lon Fuller, in *The Morality of Law*, develops the concept of the internal morality of law. Fuller's theory emphasises principles of legality, consistency, and congruence between legal rules and their application. His theory therefore provides a framework for considering the importance of principled and consistent legal decision-making.¹⁶⁵

H.L.A. Hart, particularly in *The Concept of Law*, acknowledges the complexity of judicial decision-making where established legal rules do not provide a determinate answer. His account of the open texture of law recognises that judges may exercise discretion in such cases, while remaining situated within an established legal framework.¹⁶⁶ Unlike approaches that place greater emphasis on substantive moral reasoning, Hart's account stresses the continuing importance of legal rules and institutional standards in structuring judicial discretion.¹⁶⁷ His theory is therefore relevant to the present study because it illustrates the space within which judicial interpretation may operate when legal categories require evaluative judgment.

Rawls' theory of "justice as fairness" provides a further perspective on the institutional role of courts in protecting basic liberties and maintaining a just constitutional order.¹⁶⁸ From this perspective, judicial institutions can contribute to safeguarding principles of justice against the potential shortcomings of majoritarian political decision-making.¹⁶⁹

Dworkin's "right answer" thesis challenges the conception of law as merely a system of rules, emphasising instead the importance of legal principles in judicial reasoning. He argues that judges confronted with difficult cases should seek the best interpretation of the legal rights and principles applicable to the dispute.¹⁷⁰

¹⁶³ E. M. Morgan, review of *Justice According to Law*, by Roscoe Pound, *Louisiana Law Review*, vol. 12 (1952), <https://digitalcommons.law.lsu.edu/lalrev/vol12/iss3/10> (accessed 8 August 2024).

¹⁶⁴ *Ibid.*

¹⁶⁵ Tucker, Edwin W. (1965), "The Morality of Law, by Lon L. Fuller," *Indiana Law Journal*, vol. 40, no. 2, Article 5.

¹⁶⁶ Roger Shiner, "Hart on Judicial Discretion," 30 September 2011, SSRN, <https://ssrn.com/abstract=2008417> (accessed 8 August 2024).

¹⁶⁷ *Ibid.*

¹⁶⁸ Zeitlin, S. G. "Rawlsian Jurisprudence and the Limits of Democracy." *Perspectives on Political Science*, vol. 50, no. 4, 2021, pp. 278–288. <https://doi.org/10.1080/10457097.2021.1950488> (accessed 8 August 2024).

¹⁶⁹ *Ibid.*

¹⁷⁰ Ronald Dworkin, "Hard Cases," *Harvard Law Review*, vol. 88, no. 6 (April 1975): 1057–1109, <http://www.jstor.org/stable/1340249>; see also Brian Bix, "Ronald Dworkin's Right Answer Thesis," in *Law, Language, and Legal Determinacy* (Oxford: Clarendon Press, 1995), <https://doi.org/10.1093/acprof:oso/9780198260509.003.0005> (accessed 8 August 2024).

As a feminist legal theorist, Catharine MacKinnon provides a different perspective by questioning whether formal judicial neutrality necessarily produces substantively neutral outcomes. Her work emphasises how legal institutions and doctrines may reproduce gendered structures of power even where the law appears formally impartial.¹⁷¹ From this perspective, judicial independence alone cannot guarantee gender-neutral adjudication if the legal categories through which violence against women is understood are themselves shaped by historically embedded assumptions.¹⁷²

Taken together, these theoretical perspectives demonstrate that judicial independence and judicial decision-making cannot be examined exclusively through formal constitutional guarantees. Pound draws attention to the relationship between law and social conditions; Fuller to the internal morality and integrity of legal processes; Hart to the discretion inherent in cases where legal rules do not provide determinate answers; Rawls to the institutional role of courts within a just constitutional order; Dworkin to the role of principles and interpretative judgment; and MacKinnon to the possibility that apparently neutral legal structures may reproduce underlying gendered power relations. These perspectives provide a theoretical framework for the present analysis of honour-killing cases in Germany. They make it possible to examine not only whether judges are formally independent, but also how legal interpretation may interact with cultural context, gender norms, public discourse, and the broader political and social environment.

These theoretical considerations also provide a basis for moving from the question of how courts interpret honour-related violence to the broader question of how such violence should be understood within a human-rights framework. In particular, the gendered nature of honour killings and their implications for the rights to life, equality, dignity, and freedom from violence require consideration beyond the boundaries of domestic criminal law.

Recognising Honour Killings as Human Rights Violations

The reported occurrence of so-called "honour" killings in Europe over recent decades has generated increasing concern among European institutions, including the European Committee on Equal Opportunities for Women and Men.¹⁷³ Once regarded primarily as a phenomenon associated with particular regions of Asia, Africa, and the Middle East, honour-based violence has also been documented in a number of European countries. Earlier estimates cited in the literature suggested approximately 10 to 12 honour killings

¹⁷¹ Alexandra Z. Dobrowolsky and Richard F. Devlin, "The Big Mac Attack: A Critical Affirmation of MacKinnon's Unmodified Theory of Patriarchal Power," *McGill Law Journal*, vol. 36, no. 2 (1991): 575, <https://canlii.ca/t/2bp6> (accessed 9 August 2024).

¹⁷² *Ibid.*

¹⁷³ European Committee on Equal Opportunities for Women and Men. "The Urgent Need to Combat So-Called 'Honour Crimes'." Doc. 11943, 8 June 2009.

annually in Great Britain, 12 in Germany, 11 to 14 in the Netherlands, and 5 in Belgium.¹⁷⁴ The actual number may be higher because of underreporting and difficulties in identifying and classifying honour-related motives. Some scholarship has examined the occurrence of honour-based violence in Europe in connection with migration from societies in which particular conceptions of family honour and gender roles remain socially significant.¹⁷⁵

Migration may nevertheless be relevant to the analysis insofar as social norms concerning family honour, gender roles, marriage, and female sexuality acquired in countries of origin may persist after migration. Such norms may also be transmitted or contested across generations. This does not imply that migration itself causes honour-based violence, or that such attitudes characterize migrant or Muslim communities generally. Rather, it highlights the importance of examining how particular cultural and social norms may continue, change, or be challenged within migrant communities after settlement in European societies.¹⁷⁶

Honour killings constitute severe violations of human rights and engage questions of social justice, gender equality, and the rule of law. While cultural context may be relevant to understanding the circumstances in which such violence occurs, cultural sensitivity cannot come at the expense of fundamental rights or equal legal protection. Any legal approach that treats honour-based motives as mitigating circumstances risks creating tension with the principles of equality before the law and equal protection of victims. Assuming that honour-based violence is necessarily confined to first-generation migrants may also obscure the possibility that norms and family expectations can persist, transform, or be contested across generations.

In the United Kingdom, debates surrounding honour-based violence and forced marriage have demonstrated the difficulties of reconciling multiculturalism with the protection of individual rights.¹⁷⁷ Some women's organisations and commentators have argued that particular approaches to multiculturalism have, at times, inadequately protected women experiencing honour-based violence, especially where cultural sensitivity has taken precedence over the protection of individual rights.¹⁷⁸ The UK experience illustrates an important shift towards conceptualizing honour-based violence not merely as a cultural issue, but as a human-rights concern and a gendered form of violence. Women's organisations have played an important role in advocating this approach and emphasizing the gendered dimensions of honour-based violence. Legal and policy

¹⁷⁴ Sadowa, K. "Honour Killings in Europe as an Effect of Migration Process: Perspective for Poland." *International Letters of Social and Humanistic Sciences*, vol. 58, 2015, pp. 83–90. <https://doi.org/10.18052/www.scipress.com/ILSHS.58.83>.

¹⁷⁵ Ibid.

¹⁷⁶ Robbers, Gerhard, et al. *Forced Marriages and Honour Killings: Study*. Directorate General for Internal Policies, Policy Department C: Citizens' Rights and Constitutional Affairs, European Parliament, 2008. <http://www.europarl.europa.eu/studies> (accessed 13 August 2024).

¹⁷⁷ Sadowa, "Honour Killings in Europe as an Effect of Migration Process."

¹⁷⁸ Ibid.

developments have increasingly emphasized that cultural or honour-based motivations cannot, in themselves, justify violence or diminish the protection afforded to victims.¹⁷⁹

Institutional developments have also included the adoption of definitions and guidance concerning honour-based violence. In 2008, the Association of Chief Police Officers (ACPO) employed a definition identifying honour-based violence as a crime or incident committed to protect or defend the honour of a family or community. Training initiatives for police and social-service professionals, specialized responses, awareness campaigns, and improved reporting mechanisms have also formed part of efforts to identify cases and protect potential victims.¹⁸⁰

The UK experience offers a useful comparative perspective for Germany. It suggests that addressing honour-based violence requires not only criminal prosecution, but also clearer institutional recognition, professional training, preventive education, victim-protection mechanisms, and greater public awareness. Over time, such measures may contribute to challenging social norms that sustain honour-related violence while ensuring that cultural sensitivity does not undermine the protection of fundamental rights.¹⁸¹

Recognising honour killings as human-rights violations is therefore only the first step. The further question is whether existing legal frameworks can identify, classifying, preventing, and responding effectively to such violence while preserving its particular honour-related and gendered dimensions. This requires, at the outset, distinguishing honour killings from the broader concept of femicide.

Effectiveness of Legal Frameworks in Addressing Honour Killings

Femicide and honour killing are overlapping but analytically distinct forms of gender-based violence. Femicide broadly refers to the gender-related killing of women and girls and may arise in contexts including intimate-partner violence, sexual violence, trafficking, and other forms of gender-based violence. Honour killings constitute a more specific category in which violence is motivated by the perceived need to preserve or restore family or community "honour," often within patriarchal social structures that regulate women's behaviour, sexuality, marriage, and family roles. Such violence may be triggered, for example, by premarital relationships, refusal of an arranged marriage, seeking a divorce, or other conduct perceived as violating family expectations. Honour killings may therefore fall within the broader conceptual framework of femicide where women are

¹⁷⁹ Sadowa, "Honour Killings in Europe as an Effect of Migration Process."

¹⁸⁰ Ibid.

¹⁸¹ Singh, D., and Bhandari, D. S. "Legacy of Honour and Violence: An Analysis of Factors Responsible for Honour Killings in Afghanistan, Canada, India, and Pakistan as Discussed in Selected Documentaries on Real Cases." Sage Open, vol. 11, no. 2, 2021, <https://doi.org/10.1177/21582440211022323>.

killed because of gendered expectations concerning their conduct, while retaining a distinctive honour-related motive.

In Germany, the concept of "honour killing" has gained particular prominence in public and political discourse over recent decades, especially in connection with cases involving migrant communities. Women's rights organisations have emphasized both the similarities and the distinctions between femicide and honour killing. TERRE DES FEMMES, for example, recognises that an honour killing may also constitute a femicide where a woman is killed in the context of patriarchal gender expectations, while maintaining that the specific honour-related and collective dimensions of such crimes should remain visible in their classification. Accordingly, the categories are not mutually exclusive: an honour killing may constitute a form of femicide, but not every femicide constitutes an honour killing.¹⁸² As a result, the interpretation and application of these terms can differ significantly between Germany and certain Asian or Islamic regions.¹⁸³

In Germany, violence against women, including femicide, is generally prosecuted under gender-neutral criminal-law provisions governing offences such as murder, manslaughter, bodily injury, and bodily injury resulting in death. Female genital mutilation constitutes an important exception insofar as it is specifically addressed as a criminal offence.¹⁸⁴ When legal consequences are pursued, the homicides of women by intimate partners during or following a separation are frequently categorised as manslaughter or bodily harm resulting in death, rather than murder. Schröttle and Arnis identify as a significant limitation the absence of systematic recognition of the gender-related dimension of killings of women as an aggravating factor in homicide cases.¹⁸⁵ Honour-related or jealousy-related motives may, in particular circumstances, be considered in determining whether the requirements for murder, including the presence of base motives (*niedrige Beweggründe*), are satisfied.¹⁸⁶

As the preceding analysis of German case law demonstrates, however, the judicial treatment of honour-related motives has not always been consistent, particularly about the extent to which cultural background should inform the assessment of a perpetrator's motives.

Germany lacks comprehensive official case-specific statistics on honour killings. General police crime statistics record categories such as murder, manslaughter, and bodily injury resulting in death, but do not provide a comprehensive statistical category specifically identifying honour-related killings. In the absence of comprehensive official statistics, non-governmental initiatives, including TERRE DES FEMMES and Ehrenmord.de, have compiled case-based information concerning suspected honour-related killings.¹⁸⁷

¹⁸² Lourghi and Gernhardt, "Femizid oder Ehrenmord: Begriffsdefinition."

¹⁸³ Singh and Bhandari, "Legacy of Honour and Violence."

¹⁸⁴ Schröttle, M., and M. Arnis. Policy Brief on Femicide Prevention: Germany. Institute for Empirical Sociology (IfeS), Friedrich-Alexander-University Erlangen-Nürnberg, 2022.

¹⁸⁵ Ibid.

¹⁸⁶ Ibid.

¹⁸⁷ See <https://frauenrechte.de/>, <https://www.ehrenmord.de/> accessed on 7 July 2024.

These initiatives provide useful case-based documentation, although—as discussed earlier in relation to TERRE DES FEMMES—their compilations should not be treated as equivalent to comprehensive official crime statistics.

Germany has introduced a range of measures addressing domestic and sexual violence, including federal action plans and victim-protection mechanisms. The Protection Against Violence Act (*Gewaltschutzgesetz*) and nationwide support services, including telephone counselling, form part of this broader framework.¹⁸⁸ While measures and support services have been established to assist victims of violence, protective and support facilities for women and children at risk, including women's shelters and intervention and counselling centres, remain limited and underfunded.¹⁸⁹

Despite these measures, important gaps remain in the development of a comprehensive and specifically targeted response to honour-based violence. Existing risk-assessment mechanisms were largely developed in the broader context of domestic and intimate-partner violence and may not fully capture characteristics associated with honour-based violence, including the possible involvement of multiple family members, collective decision-making, family surveillance, forced marriage, or transnational dimensions.¹⁹⁰ This suggests a need to examine whether existing police risk-assessment frameworks sufficiently identify the particular risks presented by honour-based violence and whether more specialized assessment and intervention mechanisms are required.¹⁹¹

Overall, the German legal framework provides substantial mechanisms for prosecuting homicide and protecting victims of gender-based and domestic violence, and honour-related violence does not therefore exist outside the scope of criminal law. The principal difficulty lies less in the absence of criminal prohibitions than in the identification, classification, prevention, and consistent treatment of the honour-related dimensions of particular cases. The absence of comprehensive official statistics, the difficulties associated with identifying honour-related motives, variations in judicial treatment, and potential limitations in existing risk-assessment mechanisms complicate an assessment of the framework's effectiveness. The central challenge is therefore not necessarily the creation of a separate offence of “honour killing”, but ensuring that existing legal and institutional mechanisms adequately recognise the specific dynamics of honour-based violence while maintaining equal standards of criminal responsibility and protection for victims.

The limitations identified above therefore shift the focus from the adequacy of criminal prohibition alone to the question of how honour-related violence can be identified and prevented before it escalates.

Need for Enhanced Prevention Strategies

¹⁸⁸ Schröttle and Arnis, Policy Brief on Femicide Prevention: Germany.

¹⁸⁹ Ibid.

¹⁹⁰ Ibid.

¹⁹¹ Ibid.

Since 2015, reported cases of honour-related violence and killings of women have continued to attract significant public and institutional concern in Germany, underscoring the need for further research into their prevalence, characteristics, and underlying causes in order to develop more effective prevention strategies. Early intervention is particularly important for identifying individuals at risk and preventing the escalation of honour-related violence. Furthermore, state institutions, including police, prosecutors, and courts, should strengthen the systematic documentation of honour-related cases and improve the availability of anonymised case-level data for research purposes. Current limitations in access to such information make it difficult to assess patterns, evaluate institutional responses, and develop evidence-based prevention strategies.

Greater transparency should, however, be balanced against the legitimate privacy and data-protection rights of victims, witnesses, and accused persons. Rather than broadly relaxing existing privacy protections, consideration should be given to developing mechanisms through which anonymised or pseudonymised case-level information can be made more accessible to researchers. Improved access to such data could facilitate a more systematic understanding of honour-related violence, enable the identification of recurring risk factors, and contribute to the development of evidence-based prevention measures.

Women's social networks including family members, friends, neighbours, and healthcare professionals, can play an important role in the early identification and prevention of honour-related violence. Existing research suggests that institutional responses may be insufficient to prevent serious or fatal violence, particularly where there is no documented history of previous incidents or where individuals within the victim's social environment fail to recognise warning signs and respond appropriately.¹⁹² These challenges may be particularly significant in cases of honour-related violence, where threats and coercive behaviour can involve not only an intimate partner but also members of the wider family or community.

The need for effective prevention also raises a broader legal question concerning the responsibility of the state. Where authorities know, or ought reasonably to know, that individuals face a serious risk of honour-related violence, the issue extends beyond the effectiveness of domestic prevention strategies to the state's obligations to protect fundamental human rights.

State Accountability: Honour Killings and Human Rights Violations

The primary goal of human rights law is to safeguard individuals from abuses perpetrated by the state and its officials. However, abuses committed by private individuals, such as violence against women, have historically been excluded from the scope of international human rights law.¹⁹³ The jurisprudence of the Inter-American human rights system recognises that while acts committed by private individuals, such as honour killings, are

¹⁹² Schröttle and Arnis, Policy Brief on Femicide Prevention: Germany.

¹⁹³ Rebecca Cook, "State Responsibility for Violations of Women's Human Rights," *Harvard Human Rights Journal*, vol. 7 (1994): 125, 127; Katja Luopajarvi, "International Accountability for Honour Killings as Human Rights Violations," *Nordisk Tidsskrift for Menneskerettigheter*, vol. 22, no. 1 (2004): 4–5.

classified as crimes under the domestic laws of many countries, states have a positive obligation to prevent these crimes and provide appropriate remedies. Furthermore, states are responsible for protecting and ensuring human rights and fundamental freedoms, which means that honour killings must be included in the international human rights agenda.¹⁹⁴

The legal treatment of honour killings becomes particularly problematic where legal frameworks incorporate provisions that mitigate or excuse penalties for such acts.¹⁹⁵ The occurrence of honour killings is worsened by a combination of police bias, corruption, and inadequate resources, leading to underreporting and insufficient judicial follow-up. In several countries, especially in the Middle East, legal frameworks may include discriminatory provocation defences that allow for reduced or waived penalties for men who murder female relatives over perceived dishonour, such as allegations of adultery.¹⁹⁶ Additionally, certain aspects of Islamic law, such as qisas and diyat, can facilitate leniency for offenders. Courts may also misinterpret general provocation laws, often resulting in minimal sentences for honour killings. In regions like Pakistan, tribal justice systems may circumvent official legal protections, further legitimizing these crimes. In other areas, cultural defences are sometimes employed to lessen accountability for honour killings, raising significant concerns about violations of international human rights standards.¹⁹⁷

The issue of honour killings is not directly addressed in current human rights instruments, apart from a few notable exceptions, such as the UN Declaration on the Elimination of All Forms of Violence Against Women and the Inter-American Convention on Violence Against Women. However, honour killings clearly violate the essential right to life, a principle protected by numerous international treaties, including the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights.¹⁹⁸ Additionally, these killings infringe upon other rights, such as protection against torture,¹⁹⁹ personal freedom,²⁰⁰ privacy,²⁰¹ and health.²⁰² Such acts contradict the principles of equality and non-discrimination outlined in various human rights frameworks. A closer look at honour killings indicates their significant impact on a wide range of human rights. Where an individual faces a real risk of honour-related violence

¹⁹⁴ Celina Romany, "State Responsibility Goes Private: A Feminist Critique of the Public/Private Dimension in International Human Rights Law," in *Human Rights of Women*, ed. Rebecca J. Cook (Philadelphia: University of Pennsylvania Press, 1994), pp. 85–115.

¹⁹⁵ Luopajarvi, "International Accountability for Honour Killings as Human Rights Violations," p. 6.

¹⁹⁶ *Ibid.*

¹⁹⁷ *Ibid.*

¹⁹⁸ *Ibid.*, p. 7.

¹⁹⁹ UDHR Article 5, ICCPR Article 7.

²⁰⁰ UDHR Article 3; ICCPR Article 9; ECHR Article 5; ACHR Article 7; ACHPR Article 6.

²⁰¹ ICCPR Article 17; ECHR Article 8.

²⁰² ICESCR Article 12; CEDAW Article 12; European Social Charter (ESC) Article 11; Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (Protocol of San Salvador) Article 10; ACHPR Article 16.

upon return to another jurisdiction, the principle of non-refoulement may also become relevant.²⁰³

Furthermore, under international law, non-citizens residing within a state's jurisdiction are entitled to fundamental human-rights protections without discrimination.²⁰⁴ It is the state's duty to uphold the rights of non-citizens in the same manner as it safeguards the rights of its citizens including the right to life.²⁰⁵ States are obligated to respect and ensure the rights enshrined in the Covenant (ICPR) for all individuals under their jurisdiction without any form of discrimination.²⁰⁶ Likewise, states should secure the rights outlined in the European Convention on Human Rights,²⁰⁷ and ensure the complete and unrestricted exercise of the rights it safeguards.²⁰⁸ In other words, a state must not only acknowledge the right to life but also take steps to ensure its protection, which includes implementing necessary measures to prevent the loss of life, such as legislative actions, as well as investigating homicides and prosecuting those responsible.

The European Court of Human Rights has significantly expanded on the concept of positive obligations within its rulings, recognising that authorities have responsibilities to take measures ensuring respect for human rights in interactions between private individuals.²⁰⁹ This obligation on the part of the state can be construed to include the effective enforcement of laws, taking reasonable preventive measures—such as establishing a judicial system and law enforcement agencies—and conducting thorough investigations, prosecuting offenders, and providing adequate remedies to victims. States may be held accountable for inadequate responses to systemic issues, such as failing to protect vulnerable groups, enhance education, combat impunity, or address shortcomings in law enforcement and the judicial system.

UN treaty-monitoring bodies have specifically addressed the issue of honour killings, particularly during their evaluations of reports submitted by state parties. The Committee on the Elimination of Discrimination against Women (CEDAW Committee) and the Committee on the Rights of the Child (CRC) are the entities that frequently examine honour killings; however, other treaty bodies have also taken up this issue. Both the CEDAW Committee and the CRC have voiced serious concerns regarding the violations of the right to life that manifest through honour killings.²¹⁰

²⁰³ Convention Relating to the Status of Refugees, Geneva, 28 July 1951, 189 UNTS 150, art. 33; S. K. Kapoor, *International Law and Human Rights*, 22nd ed. (Central Law Agency, 2021); Guy S. Goodwin-Gill, *The Refugee in International Law*, 2nd ed. (Oxford: Oxford University Press, 1996), pp. 117–207.

²⁰⁴ Alien could be a foreigner, immigrant, migrant, outsider, refugee, stranger, settler, visitor etc.

²⁰⁵ Kapoor, *International Law and Human Rights*.

²⁰⁶ Article 2(1) of the International Covenant on Civil and Political Rights (ICCPR), Article 6 of the ICCPR encompasses a responsibility to safeguard the right to life.

²⁰⁷ Article 1 of the European Convention on Human Rights (ECHR).

²⁰⁸ *Ibid.*

²⁰⁹ *L.C.B. v. United Kingdom*, judgment of 9 June 1998, Reports 1998-III; *Guerra v. Italy*, judgment of 19 February 1998, Reports 1998-I; *McGinley and Egan v. United Kingdom*, judgment of 9 June 1998, Reports 1998-III; Luopajarvi, “International Accountability for Honour Killings as Human Rights Violations,” p. 12.

²¹⁰ Luopajarvi, “International Accountability for Honour Killings,” p. 13.

Human rights instruments, including the European Convention on Human Rights (ECHR), protect fundamental rights relevant to honour-related violence, including the right to life,²¹¹ the prohibition of torture and inhuman or degrading treatment,²¹² right to liberty and security,²¹³ right to fair trial,²¹⁴ freedom of expression,²¹⁵ and non-discrimination.²¹⁶ The jurisprudence of the European Court of Human Rights has interpreted certain Convention rights as imposing positive obligations on states to take reasonable measures to prevent serious harm in appropriate circumstances and to conduct effective investigations into serious violations.²¹⁷

Moreover, both direct and indirect discrimination against women is implicated in honour killings, often facilitated by discriminatory laws and their applications, such as provocation defences that favour men or culturally biased legal practices. Such laws fail to protect women equally before the law. Failure to provide adequate protection, prevention, and response to honour killings amounts to a violation of women's rights and equality under the law.²¹⁸ To address these issues effectively, states must adopt comprehensive measures that encompass both legal frameworks and societal change aimed at achieving true equality for women.²¹⁹ This situation contravenes international agreements like the International Covenant on Civil and Political Rights (ICCPR) and the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW). Hence, states must reform their laws and practices to ensure equality and non-discrimination for women.²²⁰

Beyond mere legal frameworks, states are required to implement protective measures and establish supportive structures aimed at combating honour killings and violence against women. This endeavour should include the provision of shelters, legal assistance, and public education initiatives designed to challenge detrimental cultural norms and empower women adequately. Ultimately, addressing the underlying causes of such violence is crucial for the effective safeguarding against human rights abuses.²²¹

International human rights mechanisms may provide an additional avenue of accountability where domestic systems fail to provide effective protection.²²² In countries that have ratified a human rights treaty, victims or their families can file complaints against the state for rights violations, prompting international human rights bodies to

²¹¹ Article 2 of the ECHR.

²¹² Article 3 of the ECHR.

²¹³ Article 5 of the ECHR.

²¹⁴ Article 6 of the ECHR.

²¹⁵ Article 10 of the ECHR.

²¹⁶ Article 14 of the ECHR.

²¹⁷ See Ewing, Anthony P. "Establishing State Responsibility for Private Acts of Violence Against Women under the American Convention on Human Rights." *Columbia Human Rights Law Review*, vol. 26, 1995, pp. 751–774.

²¹⁸ Cook, "State Responsibility for Violations of Women's Human Rights," pp. 125, 127; Luopajarvi, "International Accountability for Honour Killings as Human Rights Violations," pp. 4–5.

²¹⁹ Ibid.

²²⁰ Ibid.

²²¹ Ewing, "Establishing State Responsibility for Private Acts of Violence Against Women under the American Convention on Human Rights."

²²² United Nations Women at UC Davis, "Davis Model United Nations Conference XV," pp. 6–14.

examine the case and evaluate whether the state has breached its obligations.²²³ In the case of the European Court of Human Rights, its judgments are binding on the states involved. NGOs and social activists play a crucial role in raising awareness, providing information, and helping victims pursue justice. Although human rights alone cannot eradicate honour killings, they provide an essential framework for legal action and empowerment in the fight against this violence.

Notably, Germany lacks a specific legal statute or provision that explicitly criminalises honour killings, nor does it offer a distinct legal definition for such acts. Furthermore, German courts exhibit inconsistencies in adjudicating cases involving crimes and violence characterised by an honour-related element. The absence of a specific offence of honour killing does not, in itself, establish a violation of Germany's international human-rights obligations. The relevant question is whether the existing legal framework, together with its practical implementation, provides effective protection, prevention, investigation, prosecution, and remedies in cases of honour-related violence.²²⁴ Furthermore, honour-based violence cases in Germany can reach the European Court of Human Rights (ECtHR), provided that there are claims of violations of the European Convention on Human Rights (ECHR). If individuals believe that their rights such as the right to life, prohibition of torture, or the right to an effective remedy have been violated by the state or its institutions as a result of such crimes, they can potentially bring their cases before the ECHR after exhausting all domestic legal remedies in Germany. In recent years, the court has addressed various cases that involve issues of domestic violence, violence against women, including honour crimes, and the state's obligation to protect individuals from such violence. However, the review undertaken for this study did not identify a specific ECtHR case concerning honour-based violence originating from Germany.²²⁵

Taken together, these human-rights obligations and the limitations identified in Germany's existing response shift the analysis from questions of legal responsibility to the practical measures required to strengthen prevention, protection, investigation, and accountability.

From Awareness to Action: Need for Reform

To combat honour crimes and killings effectively, a comprehensive series of interrelated recommendations is essential.

1. Primarily, there exists an urgent necessity to raise awareness regarding honour-based violence across all strata of society, encompassing educational institutions, workplaces, legal professions, law enforcement agencies, and the judiciary. Awareness initiatives should extend across different sections of society on the nature of such violence, as increased awareness is conducive to more effective risk

²²³ Ibid.

²²⁴ See Kasselt, "The Judicial Interpretation of Honour Killings in Germany"; Pohlreich, "Culture-Based Violence Against Immigrant Women in German Federal Court of Justice (BGH) Decisions."

²²⁵ European Court of Human Rights, "Factsheets," accessed 16 September 2024, <https://www.echr.coe.int/factsheets>.

assessment. It is vital to understand that the perpetrators of honour crimes are not solely family members; frequently, young adolescents are coerced into participating in these acts as a means of evading consequences. As a result, awareness initiatives should be initiated within educational settings, targeting students to cultivate a comprehensive understanding of honour-related violence. Furthermore, particular attention should be directed towards engaging young men and boys as a specific demographic to foster sensitivity towards these critical issues.

2. In conjunction with awareness-raising efforts, there is an acute need for the establishment of protective facilities and shelters, as well as the expansion of support networks for women and children at risk. There should be an increase in counselling and intervention centres, with appropriate financial resources allocated for this purpose. Numerous non-governmental organisations (NGOs) and women's rights groups currently advocate for victims of honour crimes often operate with limited financial resources; therefore, it is vital to provide financial backing to these organisations to enhance their capacities.
3. Moreover, it is essential to fortify legal measures, ensuring that more severe sanctions are imposed on offenders who contravene removal and protection orders. In situations where women and their children face potential victimization or homicide, courts should be empowered to restrict or suspend custody and visitation rights where there is an established risk of serious violence to women or children.
4. To ensure that honour-related violence receives appropriate public and institutional visibility, greater access to reliable and anonymised information concerning such cases should be promoted. Media reporting should provide sufficient factual context while avoiding media trials, victim-blaming, and unnecessary intrusion into the privacy and dignity of victims and their families.
5. Additionally, both state and non-state institutions frequently demonstrate a lack of awareness regarding honour crimes, and they often possess inadequate training to address high-risk situations effectively. This disconnect is particularly pronounced in cases involving migrant women, where authorities may not always possess sufficient cultural knowledge to identify and respond to the specific dynamics of honour-related violence. It is essential to provide cultural training for enforcement authorities, including police officers, lawyers, and judicial officials, who are tasked with managing these cases.
6. Although honour killings can be prosecuted under existing German homicide provisions, the absence of a specific legal definition may contribute to difficulties in identifying, categorising, and systematically documenting honour-related cases.

Consideration should therefore be given to whether a clearer legal or policy definition of honour-related violence could improve consistency in documentation, prevention, and institutional responses.

7. Furthermore, the systematic collection of case-based data pertaining to honour killings remains severely inadequate. Such data collection is vital for informing the development of more effective intervention and prevention strategies. Germany currently lacks a comprehensive national monitoring system dedicated specifically to honour-related killings, and the constraints imposed by insufficiently available data impede comprehensive national and international research efforts on this matter.
8.
 - a) Victims of honour-related violence, particularly those facing language barriers, such as migrant or refugee women, as well as individuals with disabilities or caregiving responsibilities, often remain unaware of their rights and available resources.
 - b) There exists a significant shortfall in counselling services and protective measures tailored to high-risk women, necessitating further governmental initiatives to establish dedicated counselling services specifically addressing honour-related cases at both federal and state levels.
 - c) Furthermore, a lack of support measures for the children of deceased women, especially within the context of investigations and judicial proceedings, is evident.
 - d) Individuals who actively facilitate, encourage, plan, or otherwise participate in honour-related offences should be held accountable in accordance with applicable principles of criminal liability.
 - e) Furthermore, the establishment of psychological support services designed to facilitate the recovery of women affected by honour-based violence is essential for helping them address challenges such as fear, threats, and anxiety.
9. There should be enhanced representation of women in positions of institutional power, particularly within government, business, and media leadership. Given that many forms of violence against women are rooted in patriarchal structures, fostering a more egalitarian distribution of institutional power may contribute to stronger responses to such violence. Research suggests that women's participation in political processes can promote socially oriented policies, including measures addressing violence against women.²²⁶ Although this research does not specifically concern honour killings, its findings provide relevant insights

²²⁶ Alena Bochenkova, Paolo Buonanno, and Sergio Galletta, "Fighting Violence Against Women: The Role of Female Political Representation," SSRN, 13 May 2022, <https://ssrn.com/abstract=4109145> (accessed 9 September 2024).

into the potential relationship between female political representation and institutional responses to violence against women. The research identifies several mechanisms through which female leadership may contribute to reducing such violence, including targeted policy initiatives, the provision of role models, and changes in societal attitudes towards violence against women.²²⁷ More broadly, greater female political representation may contribute to stronger institutional responses to violence against women.²²⁸

Measures aimed at increasing women's political and institutional participation may therefore form part of broader strategies to challenge structural gender inequalities. These may include greater public awareness of the significance of women's political representation, support for women candidates, and policies aimed at advancing gender equality. Collectively, such measures may gradually influence institutional practices, policy frameworks, and wider social norms towards greater gender equality.

Greater solidarity among women may also contribute to challenging patriarchal structures. Patriarchal systems can foster competition among women for limited positions of social, political, and institutional power and may contribute to the policing or shaming of women's expressions of sexual autonomy. Strengthening solidarity and collective action among women may therefore provide an additional means of challenging structural gender inequalities.

10. A thorough framework is essential for the development and implementation of a national action plan aimed at preventing and addressing "honour" crimes. Sweden serves as a valuable example, having implemented a comprehensive Action Plan that focuses on victim support, prevention, judicial efficiency, offender management, coordination, and enhancing knowledge. A National action plan should specifically target "honour" crimes, promote the empowerment of women, and advocate for broader strategies to combat gender-based violence. Such a plan requires extensive participation from various sectors, including government agencies, civil society, the private sector, and community organisations, in both the formulation and execution of the plan. Further, gaining support from high political authorities is crucial, as is enabling stakeholders to evaluate and adjust their objectives within the plan.²²⁹ Clearly defining the roles and responsibilities of different participants is vital to ensure effective collaboration among police, the judiciary, social services, and NGOs. There is also a need for adequate funding and dedicated personnel to implement the strategies outlined in the national plan, with clear sources of funding identified. In addition, establishing an independent body with civil society representatives to oversee the plan's execution is necessary. Furthermore, national action plans should tackle legal frameworks that lessen

²²⁷ Ibid.

²²⁸ Ibid.

²²⁹ End VAW NOW, "National Plan of Action to Prevent and Punish Honour Crimes," accessed 9 September 2024, <https://www.endvawnow.org/en/articles/732-national-plan-of-action-to-prevent-and-punish-honour-crimes.html?next=58>.

accountability for honour crimes and strive to eradicate social attitudes that endorse such acts. Research is required to delve into the underlying causes of honour crimes, as understanding these issues is key to taking effective action.²³⁰ It is also essential to integrate the human rights of women and girls into wider national development and poverty alleviation strategies.

11. There is a need for enhanced legal protections and educational programmes aimed at immigrant women, by advocating for greater awareness of rights among immigrant women and informed training for front-line professionals, such as law enforcement and social workers. Lawyer Gülsen Celebi offers valuable recommendations to combat honour killings and domestic violence. She urges greater integration of immigrants into German society and criticizes cultural practices that infringe upon human rights. She advocates for a strong stance against ideological extremism that threatens democratic values and women's rights. In her own words:²³¹

“Foreign women might not even speak German and may not know that shelters exist for women. On the other hand, a German woman can more easily seek help from the police or a lawyer. [...]

Foreign women need to learn more about their rights. Integration courses are a good idea. [...] Additionally, there needs to be greater awareness among those who professionally deal with violence in migrant families, including police, judiciary, social workers, youth offices, doctors, and teachers. Society must show that it does not tolerate violence against women or violations of the law.”²³²

These recommendations reflect the broader findings of this study concerning the legal, institutional, cultural, and social dimensions of honour-based violence. The discussion that follows brings these dimensions together and considers their wider implications for understanding and addressing honour killings in Germany, particularly in relation to Afghan women and migrant communities.

Discussion

The existing data and literature on honour killings remain inadequate, highlighting an urgent need for improved interventions and policies. Honour killings affect both men and women and can be categorised as instances of family and community violence, distinct from intimate partner violence.²³³ Existing statistical categories may fail to capture the full extent of honour-related violence, complicating the identification and analysis of such cases. It is important to recognise that honour violence transcends various cultures and

²³⁰ Ibid.

²³¹ International Society for Human Rights (IGFM), “Interview mit Gülsen Celebi,” accessed 16 September 2024, <https://www.igfm.de/ehrenmorde-interview-mit-guelen-celebi/>.

²³² Ibid.

²³³ Ibid.

is not confined to specific minority groups; therefore, support must be extended to all potential victims, free from stereotypes. Furthermore, there is a pressing need for increased resources, such as shelters for victims, regardless of their gender.

It is important to consider the cultural backgrounds of offenders to understand their socialisation, perceptions of honour, and the legal and social conditions prevailing in their countries of origin. Cultural context may assist in understanding the motive for an offence, but should not operate as a cultural defence, diminish criminal responsibility, or justify or excuse lethal violence. Where cultural considerations result in comparatively lenient treatment of honour-related killings, questions may arise concerning equality before the law and the protection of victims' fundamental rights.

The interlocutor narratives and case materials examined in this study provide insights into the social dynamics surrounding honour-related violence, including the role of family members, difficulties in obtaining witness testimony, and the challenges involved in establishing honour-related motives in criminal proceedings.

Several interlocutors associated the treatment of honour-related violence with Germany's broader political discourse concerning migration. In their accounts, Germany's historical experience of National Socialism continues to shape the perceived boundaries of acceptable public criticism of migration, with some participants describing a fear of being associated with right-wing or extremist political positions. These accounts should not be interpreted as representative of German society as a whole; rather, they reveal how some interlocutors understood the relationship between historical memory, migration discourse, and institutional responses to honour-related violence.

Currently, media outlets, including social media, extensively report on incidents of honour killings. Much of the scholarly research relies on statistical data, which tends to be limited to information gathered by private organisations or, to a lesser extent, by state authorities. In Germany and across Europe there are strict data protection and privacy regulations. Some data is restricted while other information is publicly available, raising concerns about the oversight of data collectors—how can we ensure that the data is collected and stored accurately? The principal methodological difficulty is not privacy protection itself, which serves legitimate legal purposes, but the limited availability of consistent, anonymised or pseudonymised case-level information that would permit researchers to trace patterns while protecting victims, witnesses, and accused persons. Data collected by private organisations may differ in methodology, definitions, scope, and resources, making systematic comparison difficult. Consequently, the understanding of both fatal and non-fatal cases of honour violence is restricted. Available data can provide only limited insights into prevalence and patterns, while important aspects of the specific dynamics of the violence remain difficult to establish. Thus, there is a need for more comprehensive studies in the future.

Germany's National Socialist past emerged repeatedly in discussions concerning migration and contemporary political identity. Several participants perceived historical memory and collective responsibility as continuing to influence attitudes towards

nationalism, migration, and right-wing political positions. Others, however, expressed concern that contemporary Germans should not be held personally responsible for crimes committed by previous generations. These contrasting perspectives illustrate the continuing significance of historical memory in contemporary debates concerning migration and national identity.

The discussion with Frau Kauth²³⁴ further highlighted the importance of preventive intervention. Her account emphasised the difficulties faced by young women from migrant backgrounds who experience forced marriage, family conflict, isolation, or honour-related violence, particularly where loyalty to the family or feelings of shame discourage them from seeking assistance. Prevention initiatives directed at young men were also identified as important for promoting non-violence, gender equality, and social responsibility. The discussion further underscored the importance of cooperation between NGOs, public institutions, and families, together with adequate institutional and financial support.

Not all interlocutors, however, regarded cultural explanations as the most appropriate framework. In the discussion with Helena Elz of BIG Koordinierung Berlin,²³⁵ emphasis was placed on understanding femicide and domestic violence primarily through patriarchal structures rather than attributing violence to particular cultures. From this perspective, the categorisation of certain killings as “honour killings” risks obscuring similarities with other forms of gender-based violence.

This perspective contrasts with the views expressed by other interlocutors in this study, who placed greater emphasis on migration, cultural background, family structures, and the persistence of norms acquired in the countries of origin. According to these interlocutors, migration does not necessarily result in the abandonment of previously acquired understandings of gender roles, family honour, and female sexuality, and such norms may continue to influence family relationships after settlement in Germany. The findings of this study therefore reveal two competing interpretations: one that understands honour-related violence primarily within the broader framework of patriarchy and gender-based violence, and another that places greater emphasis on the role of migration, cultural continuity, and particular conceptions of family honour. These perspectives are not necessarily mutually exclusive, since patriarchal structures may themselves be expressed differently across particular social and cultural contexts. Taken together, these findings provide the basis for the study’s overall conclusions concerning the legal, cultural, social, and institutional dimensions of honour-related violence in Germany.

Conclusion

²³⁴ Conversation with Frau Kauth, Eva Evangelische Gesellschaft Stuttgart e.V., 2 October 2024, 13:00–14:10.

²³⁵ Discussion with Helena Elz, BIG Koordinierung, Berlin, 17 October 2024, 13:00–14:00.

This study has examined honour killings affecting Afghan women in Germany within the wider legal, social, and institutional context of honour-based violence. The analysis indicates that German criminal law already provides mechanisms for prosecuting lethal and non-lethal violence, including the possibility of treating honour-related motives as base motives in the assessment of murder. The central problem is therefore not simply the absence of a separate offence of honour killing, but the difficulty of identifying honour-related motives consistently, documenting cases systematically, assessing risks that may involve several family members, and ensuring that victims receive effective protection before violence escalates.

The material also demonstrates that honour-related violence cannot be explained adequately through a single framework. Patriarchal gender inequality is a central feature of such violence, but in individual cases it may interact with family structures, migration experiences, cultural continuity, socialisation, and particular conceptions of honour, sexuality, and female autonomy. Cultural context may therefore be relevant to understanding motive and risk, but it must neither serve as a defence nor reduce the equal criminal responsibility of perpetrators. At the same time, honour-related violence should not be attributed generally to Afghan, Muslim, or migrant communities, and institutional responses should avoid cultural stereotyping.

The study also demonstrates that responses to honour-related violence are shaped within broader debates concerning migration, integration, multiculturalism, and national identity in Germany. These debates are influenced by historical and political experiences that continue to shape how sensitive questions involving culture, gender equality, and migration are publicly discussed. However, such debates must not prevent recognition of the specific dynamics of honour-based violence or weaken the state's responsibility to provide equal protection to all women.

The study is subject to important limitations. Germany does not maintain comprehensive official statistics specifically on honour killings, and the absence of a uniform legal definition makes comparison across cases difficult. Access to police and prosecutorial material is restricted by legitimate privacy and data-protection considerations, while media and NGO data vary in methodology and completeness. The interlocutor accounts used in this research provide valuable qualitative insights but cannot be treated as representative of German society or institutions as a whole. These limitations mean that the study cannot establish the true prevalence of honour killings in Germany or draw causal conclusions about migration, culture, and violence.

The findings nevertheless support several practical priorities: more consistent documentation of honour-related motives; appropriately anonymised case-level data for research; specialised risk assessment capable of recognising collective and transnational family dynamics; culturally informed training for police, courts, social services, healthcare professionals, and educators; and accessible protection and counselling for women at risk, including Afghan and other refugee or migrant women who may face language, dependency, or isolation barriers. Prevention should also involve work with families,

communities, and young men while maintaining the autonomy and safety of potential victims.

The study also highlights that legal responses to honour-related violence do not develop independently from wider social and political debates concerning migration, integration, multiculturalism, and national identity in Germany. These debates influence how honour-related violence is framed and discussed within public and institutional contexts. Recognising these broader dynamics is important, but they must not prevent the legal system from maintaining equal protection for victims and equal accountability for perpetrators.

Ultimately, the protection of Afghan women in Germany requires an approach that combines equal application of German criminal law with a sufficiently nuanced understanding of the social circumstances in which honour-related violence can arise. Better evidence, earlier intervention, and coordinated institutional responses are more likely to improve protection than either treating honour killings as wholly indistinguishable from other forms of gender-based violence or explaining them solely through culture. Further empirical research based on reliable, privacy-protective case data is necessary to determine the scale and changing characteristics of the problem and to evaluate which prevention measures are most effective.

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